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AS 4000:2025

Amended from

Australian Standard®

~~Amended from~~

Stanwell Corporation – SPS New
Project Building

Contract No. [SCL-##]

General Conditions of Contract

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- Air Conditioning & Mechanical Contractors Association
 - Australian Construction Industry Forum
 - Australian Institute of Architects
 - Civil Contractors Federation
 - Consult Australia
 - Engineers Australia
 - Housing Industry Association
 - Institute of Public Works Engineering Australasia
 - Law Council of Australia
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-

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Australian Standard[®]

General Conditions of Contract

Originated as part of AS CA24—1952.
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Preface

This Standard was prepared by the Standards Australia Committee MB-010, General Conditions of Contract, to supersede AS 4000—1997 and AS 2124—1992.

This document is the result of consensus among representatives on the Committee to produce it as an Australian Standard.

The major changes in this edition are as follows:

- (a) Insertion of a Formal Instrument of Agreement as a basis for forming the Contract, with provision for including the Contract Sum.
- (b) Redrafting and restructuring of clause 1, with new definitions and principles of interpretation added to make the Contract easier to read.
- (c) Deletion of the previous clause 6 Evidence of Contract and replacement of it with a new GST clause.
- (d) Clarification of how the adjustment for actual quantities works.
- (e) Use of “must” rather than “shall”.
- (f) Use of consistent language for time periods (e.g. using “as soon as practicable” rather than a range of terms).
- (g) Addition of a clause dealing with the PPSA.
- (h) Amendments to the dispute resolution clause to allow users greater flexibility in choosing a dispute resolution forum that best meets their business needs.
- (i) Alignment of the insolvency provisions with current legislation.
- (j) Addition of a clause to allow users to appoint the Contractor to the role of Principal Contractor under work health and safety or occupational health and safety legislation.
- (k) Addition of exceptions to the confidentiality obligation to clause 8.5.

Warning

Users of this document are warned that clause 15 (Damage to persons and property other than WUC) does not limit the liability of parties for special, indirect or consequential losses.

This unlimited liability applies despite any limitations or exclusions permitted under insurance clauses 16 (Insurance of the works) and 17 (Public liability insurance).

Parties wishing to limit their liability should seek insurance and legal advice before entering into a contract using this document.

Users of this document are advised to consider relevant Commonwealth, state and territory regulatory requirements to determine any particular legal requirements and seek expert advice as applicable.

Formal instrument of agreement

<u>Date</u>		
<u>Between</u>	<u>Principal</u>	<u>Stanwell Corporation Limited</u> <u>of</u> <u>Level 2, 180 Ann Street,</u> <u>Brisbane Qld 4000</u> <u>ACN: 078 848 674</u> <u>ABN: 37 078 848 674</u>
<u>and</u>	<u>Contractor</u>	<u>[insert]</u> <u>of [insert]</u> <u>ACN: [insert]</u> <u>ABN: [insert]</u>

Agreement made ~~Click or tap here to enter text~~ day of ~~Click here to enter text~~ 20~~Click or tap here to enter text~~

~~Between~~ ~~Click or tap here to enter text (the Contractor)~~

~~(ABN~~ ~~Click or tap here to enter text)~~

~~and~~ ~~Click or tap here to enter text (the Principal)~~

~~(ABN~~ ~~Click or tap here to enter text)~~

~~together (the parties)~~

~~in respect of~~ ~~Click or tap here to enter text~~ project

~~at~~ ~~Click or tap here to enter the address of the project~~

Background

A The Principal wishes to enter into a contract with the Contractor to perform WUC and the Works.

B The Contractor has agreed to perform WUC and the Works in accordance with this Contract.

~~The parties agree that the Documents listed~~ **IT IS AGREED** as follows:

~~AS 4000:2025, General Conditions of Contract and annexures~~

Words and phrases defined in the Contract have the same meaning in this Formal Instrument of Agreement as they have in the Contract.

1. Performance of the Works

- (a) The Contractor must perform WUC and the Works in accordance with the Contract.
(b) The Contractor must as between the Contractor and the Principal bear all risks and costs (whether ascertainable at the date of this Contract or not) arising out of or in connection with the performance of WUC and the Works, except to the extent expressly made the responsibility of the Principal under the Contract.

~~Specifications described as:~~ ~~Click or tap here to enter text~~

~~Drawings described as:~~ ~~Click or tap here to enter text~~

~~Other Documents described as:~~ ~~Click or tap here to enter text~~

together comprise the Contract between the parties and if the Contractor or the Principal is two or more persons then they will be bound jointly and severally.

2. ~~The Contract Sum (exclusive of GST) is as indicated below:~~

- ☐ (a) A lump sum only, the total lump sum of Click or tap here to enter amount.
- ☐ (b) The sum of the products ascertained by multiplying the measured quantity of each section or item of Work actually carried out under the Contract by the corresponding rate for each section or item of Work as set out in the following Documents:
Click or tap here to enter list of documents.
- ☐ (c) The aggregate of:-
- (i) the lump sum of Click or tap here to enter amount; and
 - (ii) the sum of the products ascertained by multiplying the measured quantity of each section or item of Work actually carried out under the Contract by the corresponding rate for each section or item of Work as set out in the following Documents:
Click or tap here to enter list of documents.

~~Note: The box which is checked is the option selected by the parties. Only one box should be ticked and the relevant information inserted.~~

The Principal must pay to the Contractor the Contract Sum, and any other sums which become payable under the Contract, in accordance with the Contract.

3. QBCC Act

The parties acknowledge that under the QBCC Act, unless the parties expressly agree otherwise, to the extent that it applies, section 67K(2) of the QBCC Act makes the Contract subject to a condition that at any time before Practical Completion the total of all Securities held by the Principal under the Contract (other than those referred to in section 67K(3) of the QBCC Act) is not to exceed 5% of the Contract Sum for the Contract (which under the QBCC Act includes adjustments for variations).

By initialling the Contract in the space provided below, the parties expressly agree that the Contract is not subject to the condition imposed by section 67K(2) and explained above. (Note: Parties to initial)

[Principal's Initials]

[Contractor's Initials]

The Contractor warrants that it:

- (c) is licensed under the QBCC Act to carry out the Works; and
(d) will remain licensed under the QBCC Act at all times when carrying out the Works.

4. Authority

Each person signing this Contract represents that he or she has authority at the date of signing to do so.

Executed as an Agreement

Signed ~~by or for and~~ on behalf of ~~the Contractor in accordance with section 127 of the Corporations Act 2001 (Cth):~~

Stanwell Corporation Limited by a duly authorised representative

Signature of ~~Director~~ authorised representative

~~Signature of Director/Secretary~~

Name of ~~Director (print)~~ authorised representative

~~Name of Director/Secretary (print)~~

Signed ~~Executed~~ by ~~or on behalf of the~~ Principal ~~insert~~ in accordance with ~~section~~ Section 127 of the Corporations Act 2001 ~~(Cth)~~ in the presence of

~~Signature of Director~~
Signature of director

←

Signature of director/company secretary
(Please delete as applicable)

~~Signature of Director/Secretary~~

Name of ~~Director~~ director (print)

Name of director/company secretary (print)

~~Name of Director/Secretary (print)~~

Click or tap here to enter the address of the project

Signed ~~by or on behalf of the Contractor in the presence of:~~

~~Signature of Contractor~~

~~Signature of witness~~

~~Name of witness (print)~~

Signed ~~by or on behalf of the Principal in the presence of:~~

Signature of Principal

Signature of witness

Name of witness (print)

Notes:

- (a) There are two signature blocks for each party. The first should be used if the party signing the Contract is an Australian company registered under the *Corporations Act 2001* (Cth). The second should be used if the party signing the Contract is not a company or is not signing in accordance with section 127 of the *Corporations Act 2001* (Cth). If the second is being used, the parties should ensure that the Contract has been validly executed.
- (b) Execution of this Formal Instrument of Agreement will form the Contract and the Date of Contract will be the date of this Formal Instrument of Agreement, unless the Contract has been formed on an earlier date.
- (c) All Documents intended to evidence the parties' consensus should be listed.
- (d) AS 4000:2025 does not contain an order or precedence of Documents other than that figured dimensions prevail over scaled dimensions.
- (e) Note that some jurisdictions may require stamp duty to be paid on a Contract Document.
- (f) A different Formal Instrument of Agreement may be required in certain jurisdictions.

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1. Interpretation of contract

1.1 Definitions

In the Contract, except where the context otherwise requires:

Background IP means material including data, procedures, processes, systems, know-how and methodologies and subject matter capable of protection by Intellectual Property Rights:

(a) which is pre-existing or developed other than in the performance of the Contract; and

(b) made available to the other party for the purposes of the Contract,

whether owned by the party making it available or a third party;

Bill of Quantities means a Document named therein as a bill of quantities issued to tenderers by or on behalf of the Principal, stating estimated quantities of Work to be carried out;

Business Day:

(a) for the purposes of clause 37, has the meaning in the Security of Payment Act; and

(b) otherwise means a calendar day ending at 5:00pm, other than a Saturday, Sunday or public holiday in Brisbane, Australia;

Certificate of Practical Completion means the certificate of practical completion issued in accordance with clause 34.6;

Compensable Cause means:

(a) any act, default or omission of the Superintendent, the Principal or its consultants, agents or other contractors (not being employed by the Contractor), other than those permitted under the Contract; and

(b) any of those causes listed in Item 31;

Construction Plant means appliances and things used in carrying out WUC but not forming part of the Works;

Contract means the contract constituted by the Formal Instrument of Agreement ~~executed by the parties or the contract otherwise created by the parties,~~ these General Conditions of Contract, the Scope of Work and Annexures in this document;

Contract Sum means the amount set out in ~~the Formal Instrument of Agreement or otherwise in the Contract~~ Annexure Part F, including Provisional Sums but excluding any additions or deductions which may be required to be made under the Contract;

Contractor means the person named as the Contractor in Item 3 or otherwise in the Contract;

DAB Decision means a decision as defined in the Dispute Avoidance Board Agreement;

Date of Contract means the date ~~on which the Contract was formed~~ is executed by the last party to execute it;

Date for Practical Completion means:

- (a) if Item 8(a) provides a date for Practical Completion, the date; or
- (b) if Item 8(b) provides a period of time for Practical Completion, the last day of the period,

but if any EOT for Practical Completion is directed by the Superintendent or allowed in any binding decision, binding expert determination, arbitration or litigation, it means the date resulting therefrom;

Date of Practical Completion means:

- (a) the date stated in a Certificate of Practical Completion as the Date of Practical Completion; or
- (b) if another date is determined in any binding decision, binding expert determination, arbitration or litigation as the date upon which Practical Completion was reached, that other date;

Deed of Guarantee, Undertaking and Substitution means a deed issued in accordance with clause 5.6;

Defect means any aspect of the Work done by the Contractor which is not in accordance with the requirements of the Contract (including any omission);

Defects Liability Period is the period stated in Item 32 commencing at 4:00 pm on the Date of Practical Completion;

Direction includes agreement, approval, assessment, authorisation, certificate, decision, demand, determination, explanation, instruction, notice, order, permission, rejection, request or requirement;

Dispute means any dispute between the parties arising out of or in connection with the Contract or the performance or non-performance of the obligations of the parties under it, including a dispute concerning:

- (a) a Superintendent's Direction; or
- (b) a claim:
 - (i) in tort;
 - (ii) under statute;
 - (iii) for restitution based on unjust enrichment or other quantum meruit; or
 - (iv) for rectification or frustration,or like claim available under the law governing the Contract;

Dispute Avoidance Board means a dispute avoidance board constituted by a Dispute Avoidance Board Agreement;

Dispute Avoidance Board Agreement means the agreement executed by the parties and the Dispute Avoidance Board Member(s) in accordance with clause 42.11, if the parties have selected Dispute Avoidance Board as the dispute resolution option in Item 37;

Dispute Avoidance Board Members means the members of a Dispute Avoidance Board constituted by a Dispute Avoidance Board Agreement;

Document

- (a) means a record of information, however recorded; and
- (b) includes:
 - (i) a thing on which there is writing;
 - (ii) a thing on which there are marks, symbols or perforations having a meaning for persons qualified to interpret them;
 - (iii) a thing from which sounds, images or writings can be reproduced with or without the aid of anything else;
 - (iv) a map, plan, drawing or photograph; or
 - (v) an Electronic Document;

Electronic Document means:

- (a) a thing from which sounds, images or writings can be reproduced with or without the aid of anything else;
- (b) a record of information reproduced from a thing mentioned in paragraph (a); or
- (c) a record of information that exists in digital form and is capable of being reproduced, transmitted, stored or duplicated by electronic means;

[SOURCE: *Acts Interpretation Act 1954* (QLD)]

EOT (from “extension of time”) means an EOT assessed, deemed to be assessed or directed under clause 34.5;

Excepted Risk means an excepted risk referred to in clause 14.3;

Final Certificate means the final certificate issued in accordance with clause 37.5;

Final Payment means the payment of the amount that must be paid under clause 37.5;

Final Payment Claim means the final payment claim given in accordance with clause 37.5;

Formal Instrument of Agreement means an agreement in writing executed by the parties by which the parties agree to be bound by, among other things, these General Conditions of Contract in respect of WUC;

Good Industry Practice means the degree of professional skill, care, competence, diligence, experience and ability expected of a competent professional contractor experienced in performing works and activities similar to the WUC;

GST (from “Goods and Services Tax”) has the meaning given to that term in the GST Law;

GST Law has the meaning given to that term in the *A New Tax System (Goods and Services Tax) Act 1999* (Cth);

~~**Intellectual Property Right** means any patent, registered design, trademark or name, copyright or other protected right;~~

Heavy Vehicle National Law means the *Heavy Vehicle National Law Act 2012 (Qld)* and other applicable heavy vehicle legislation and regulations as amended from time to time;

Incident means any work health and safety or security incident arising from performing (or failing to perform) the WUC, including work health and safety or security incidents relating to:

- (a) a fatality or injury to any person, including any incident which must be reported to any regulator under the WHS Laws or any other authority;
- (b) unauthorised loss of containment, escape of or migration of any hazardous material;
- (c) any fire or dangerous event;
- (d) a security breach;
- (e) a non-compliance with a Legislative Requirements or a third party agreement;
- (f) any public complaint; or
- (g) any event which results in or has the potential to result in injury, ill-health, damage to or loss of property, interruption to operations or which impacts on stakeholder relationships.

and includes:

- (h) a near miss, breach of procedure, quality failure and/or injuries to any person including members of the public; and
- (i) any event that is notifiable under any Legislative Requirements including the WHS Laws;

Intellectual Property Right means any rights for inventions (including patent rights), registered design, registered or unregistered trademark (including service marks), registered name, copyright, Confidential Information (including trade secrets), know-how, circuit layouts and other protected right throughout the world resulting from intellectual activity in the industrial, scientific or artistic fields. These rights include:

- (a) all rights in applications to register these rights; and
- (b) all renewals and extensions of these rights;

Interested Person means an interested person as defined in section 275(9) of the PPSA;

Item means an Item in Annexure Part A;

Latent Conditions are physical conditions on the Site and its near surrounds, including contamination or artificial things but excluding weather conditions, which differ materially from physical conditions which should reasonably have been anticipated by a competent contractor exercising Good Industry Practice at the time of the Contractor's tender if the competent contractor had inspected:

- (a) all written information made available ~~by the Principal~~ to the Contractor ~~for the purpose of tendering~~;
- (b) all information influencing the risk allocation in the Contractor's tender and reasonably obtainable by the making of reasonable enquiries; and

- (c) the Site and its near surrounds;

Legislative Requirement includes:

- (a) legislation, legislative instruments (including subordinate legislation, regulations, rules, orders, by-laws), awards and proclamations and declarations of the jurisdiction where WUC or the particular part of it is being carried out;
- (b) certificates, licences, consents, permits, approvals and requirements of organisations having jurisdiction in connection with the carrying out of WUC and which have the force of law; and
- (c) fees and charges payable in connection with the foregoing;

Moral Rights means each right defined as a 'moral right' in Part IX of the [Copyright Act 1968 \(Cth\)](#), and if work or any document relating to the Works is used in any jurisdiction other than Australia, any similar right capable of protection under the laws of that jurisdiction;

Notice of Dispute means a notice of dispute given under clause 42.1;

Pay Table has the meaning given in Annexure Part F;

PMSI means a purchase money security interest as defined in the PPSA;

PPS Register means the register as defined in the PPSA;

PPSA means the *Personal Property Securities Act 2009* (Cth);

PPSI means a security interest as defined in the PPSA;

Practical Completion is that stage in the carrying out and completion of WUC when:

- (a) the Works are complete except for minor Defects:
- (i) which do not prevent the Works from being reasonably capable of being used for their stated purpose;
 - (ii) which the Superintendent determines the Contractor has reasonable grounds for not having already rectified; and
 - (iii) the rectification of which will not prejudice the convenient use of the Works;
- (b) the Tests required by the Contract to be carried out and passed before the Works reach practical completion have been carried out and passed;
- (c) Documents and other information required under the Contract [or by Good Industry Practice](#) which, in the Superintendent's opinion are essential for the use, operation and maintenance of the Works, have been supplied;
- (d) the Works satisfy all Legislative Requirements except those in Item 22(a) or those directed by the Superintendent to be satisfied by or on behalf of the Principal; and
- (e) any other requirements set out in Item 10 have been satisfied;

Prescribed Notice means a prescribed notice given in accordance with clause 41.1;

Principal means the person named as the Principal in Item 1 or otherwise in the Contract;

Principal Contractor means a principal contractor as defined under or referred to in any Legislative Requirement relating to:

- (a) work health and safety; or
- (b) occupational health and safety;

Principal's Policies means:

- (a) any of the Principal's policies and procedures available from the 'Doing Business With Us' and 'Information Publication Scheme' page on the Principal's website (www.stanwell.com) or from the Principal on request; and
- (b) any other Principal's policies and procedures applicable to the Site and provided to the Contractor,

as amended from time to time and as relevant to the WUC;

Program means a written statement showing the dates by which, or the times within which, the various stages or portions of WUC are planned to be carried out or completed. For the avoidance of doubt, the Program must be structured into stage-based programs for demolition, construction and commissioning, as described in the Scope of Work;

Progress Certificate means a progress certificate issued in accordance with clause 37.2(a) or a progress claim which is deemed to be a Progress Certificate under clause 37.2;

Provisional Sum means any monetary sum, contingency sum, prime cost item or amount stated to be a provisional sum in the Contract;

Public Holiday means a day appointed or declared as a public holiday or statutory holiday at the place where the act or thing required to be done under the Contract is required to be done;

Public Liability Policy means the public liability policy to be effected and maintained under clause 17;

QBCC Act means the Queensland Building and Construction Commission Act 1991 (Qld);

Qualifying Cause of Delay means either or both of:

- (a) any act, default or omission (other than any act or omission authorised by the Contract) of the Superintendent, the Principal or its consultants, agents or other contractors (not being employed by the Contractor) which causes delay; or
- (b) a cause of delay other than:
 - (i) a breach, act or omission by the Contractor;
 - (ii) industrial conditions or inclement weather occurring after the Date for Practical Completion; or
 - (iii) a cause stated in Item 27;

~~**RCTI** means a recipient-created tax invoice;~~

Recipient means the recipient of a supply made by a Supplier under or in connection with the Contract;

Relevant Supply means a taxable supply referred to in Item 5;

Schedule of Rates means any schedule included in the Contract which, in respect of any section or item of Work to be carried out, shows the rate or respective rates of payment for the execution of that Work and which may also include lump sums, Provisional Sums, other sums, quantities and prices;

Scope of Work means the Principal's written requirements for the Work and the Works described in the documents set out in Annexure Part E;

Secured Party means a secured party as defined in the PPSA;

Security means:

- (a) cash;
- (b) retention moneys;
- (c) bonds or inscribed stock or their equivalent issued by a national, state or territory government;
- (d) interest bearing deposit in a bank carrying on business at the place stated in Item 11(c);
- (e) an approved unconditional undertaking (the form in Annexure Part C is approved) or an approved performance undertaking given by an approved financial institution or approved insurance company, in each case approved by the beneficiary; or
- (f) other form approved by the party having the benefit of the security;

Security of Payment Act means the *Building Industry Fairness (Security of Payment) Act 2017 (Qld)*;

Selected Subcontract Work means that work referred to in clause 9.3;

Selected Subcontractor means the subcontractor referred to in clause 9.3;

Separable Portion means a portion of the Works identified as such in the Contract or by the Superintendent in accordance with clause 4;

Site means the area defined in Item 28 in Annexure Part A to which possession access is to be given and any other lands and places made available to the Contractor by the Principal for the purpose of the Contract;

Superintendent means the person stated in Item 6 as the Superintendent or other person from time to time appointed in writing by the Principal to be the Superintendent and notified as such in writing to the Contractor by the Principal and, so far as concerns the functions exercisable by a Superintendent's Representative, includes a Superintendent's Representative;

Superintendent's Representative means an individual appointed in writing by the Superintendent under clause 21;

Supplier means a party who is required to pay GST on any supply made by that party under or in connection with the Contract;

Survey Mark means a survey peg, bench mark, reference mark, signal, alignment, level mark or any other mark for the purpose of setting out, checking or measuring WUC;

Temporary Work means Work used in carrying out and completing WUC, but not forming part of the Works;

Test means the tests referred to in clause 30.1, and includes examine and measure;

Variation means a change to WUC or the Works which is any one or more of the following:

- (a) an increase, decrease or omission of any part of WUC or the Works;
- (b) a change to the character or quality of WUC or the Works;
- (c) a change to the levels, lines, positions or dimensions of WUC or the Works;
- (d) additional Work; or
- (e) demolition or removal of material or Work no longer required by the Principal,

and which is of a character and extent contemplated by, and capable of being carried out under, the provisions of the Contract;

WHS Laws means the Work Health and Safety Act 2011 (Cth), Work Health and Safety Regulations 2011 (Cth), Work Health & Safety Act 2011 (Qld) and the Work Health & Safety Regulation 2011 (Qld), together with relevant occupational health and safety related Legislative Requirements, directions on safety or notices issued by any relevant authority and Australian Standards as applicable to the WUC or the Works and as amended from time to time;

WHS Management Plan means a plan that includes:

- (a) all matters required by the WHS Laws to be covered in a WHS Management Plan;
- (b) an assessment of the hazards inherent in performing the WUC and strategies to eliminate or minimise those hazards documented in a risk register; and
- (c) such other details as required by the Principal,

and which complies with the WHS Laws and WHS Policies and Procedures;

WHS Policies and Procedures means the work, health and safety policies, procedures, measures or standards specified in the Principal's Policies, as modified or substituted for from time to time and notified to the Contractor;

WHS Requirements means the WHS Laws, WHS Management Plan and WHS Policies and Procedures;

Work includes the provision of materials;

Works means the whole of the Work to be carried out and completed in accordance with the Contract, including Variations provided for by the Contract, which is to be handed over to the Principal;

WUC (from "Work under the Contract") means the Work which the Contractor is or may be required to carry out and complete under the Contract (including the provision of

materials) and includes Variations, remedial Work, Construction Plant and Temporary Works;

and like words that are capitalised have a corresponding meaning.

1.2 Interpretation

In the Contract:

- (a) references to days mean calendar days;
- (b) the time for doing any act or thing under the Contract is, if it ends on a Saturday, Sunday or Public Holiday, deemed to end on the day next following which is not a Saturday, Sunday or Public Holiday;
- (c) references to a person include an individual, firm or a body, corporate or unincorporate;
- (d) a reference to legislation or a legislative provision includes any modification or substitution of that legislation or legislative provision and any subordinate legislation issued under that legislation;
- (e) clause headings do not form part of these General Conditions of Contract and are not to be used in the interpretation of the Contract;
- (f) words in the singular include the plural and words in the plural include the singular, according to the requirements of the context;
- (g) words importing a gender include every gender;
- (h) "including" and "includes" are not words of limitation;
- (i) communications between the Principal, the Superintendent and the Contractor must be in the English language;
- (j) measurements of physical quantities are to be in legal units of measurement of the jurisdiction in Item 9;
- (k) unless otherwise provided, prices are in the currency in Item 11(a) and payments are to be made in that currency at the place in Item 11(b);
- (l) the law governing the Contract and its interpretation, and any agreement to arbitrate is the law of the jurisdiction in Item 9; ~~and~~
- (m) where according to Annexure Part B, any clauses or their parts in these General Conditions of Contract are deleted or amended or new clauses or parts are added, the Contract is to be read so as to give effect to the deletions, amendments and additions; ~~and~~ and
- (n) no rule of construction applies to the disadvantage of a party on the basis that the party put forward the Contract or any part;
- (o) the word "subcontractor" will include suppliers and consultants;
- (p) when the Principal or Superintendent 'may' exercise a right or remedy, the Principal or Superintendent (as the case may be) have an absolute discretion whether or not

to do so, and are not required to exercise the discretion in good faith or having regard to, or for the benefit of, the Contractor;

(q) this Contract constitutes the entire agreement and understanding between the parties and will take effect according to its tenor despite:

(i) any prior agreement in conflict or at variance with the Contract; or

(ii) any correspondence or other documents (including the Contractor's standard commercial terms) relating to the subject matter of the Contract which may have passed between the parties prior to the award date and which are not included in the Contract;

(r) where a party comprises two or more persons, each person will be jointly and severally bound by the party's obligations under the Contract; and

(s) any provision in this Contract which is illegal, void or unenforceable will be ineffective to the extent only of such illegality, voidness or unenforceability and such illegality, voidness or unenforceability will not invalidate any other provision of the Contract.

2. Nature of contract

2.1 Performance and payment

The Contractor must carry out and complete WUC in accordance with the Contract and Directions authorised by the Contract.

The Principal must pay the Contractor the Contract Sum adjusted by any additions or deductions made in accordance with the Contract.

2.2 Bill of quantities

The Alternative in Item 12(a) applies.

Alternative 1

A Bill of Quantities forms part of the Contract and is to be priced in accordance with clause 2.3.

Alternative 2

A Bill of Quantities does not form part of the Contract and is not to be priced in accordance with clause 2.3 unless so stated in Item 12(b).

2.3 Priced bill of quantities

If a Bill of Quantities is to be priced:

- (a) all items of Work included in the Bill of Quantities must be priced and extended by the Contractor and the sum of the prices as extended must equal the sum accepted by the Principal for carrying out the whole of the Work to which the Bill of Quantities relates;
- (b) the Contractor must lodge the Bill of Quantities so priced and extended with the Superintendent before the expiration of the time for lodgement stated in Item 12(c)

or such further time as may be directed by the Superintendent from time to time;
and

- (c) despite any other provision of the Contract, the Contractor is not entitled to payment until the Contractor has lodged the Bill of Quantities so priced and extended.

If the aggregate amount in a priced Bill of Quantities does not equal the sum accepted for the relevant Work, the Superintendent must (unless the parties agree within 7 days of notification) determine an appropriate correction of errors and inconsistencies in rates and prices in the Bill of Quantities so that the aggregate amount equals such sum.

2.4 Quantities

Quantities in a Bill of Quantities or Schedule of Rates are estimates only.

The Superintendent is not required to give a Direction by reason of the actual quantity of an item of Work required to perform the Contract being greater or less than the quantity stated in a Bill of Quantities which forms part of the Contract or Schedule of Rates.

2.5 Adjustment for actual quantities

If, otherwise than by reason of a Direction of a Variation, the actual quantity of an item of Work required to perform the Contract is greater or less than the quantity stated in a Bill of Quantities which forms part of the Contract or Schedule of Rates and:

- (a) if the Principal accepted a lump sum for the item of Work, the difference is a deemed Variation; or
- (b) if the Principal accepted a rate for the item of Work, the rate applies to the greater or lesser quantities, provided that where limits of accuracy for a quantity in a Schedule of Rates are stated in Item 13:
 - (i) the rate applies to the greater quantities if they are within the limits, otherwise the rates apply to the quantities up to the upper limit and the quantities in excess of the upper limit will be a deemed Variation; or
 - (ii) the rate applies to the lesser quantities if they are within the limits, otherwise the lesser quantities are a deemed Variation.

If such a Bill of Quantities or Schedule of Rates omits an item of Work which should have been included, the item of Work is a deemed Variation.

Despite the preceding provisions of this clause 2 in respect of a Bill of Quantities, a Variation will not be deemed for:

- (i) actual quantities of an item of Work under paragraph (a);
 - (ii) an omitted item of Work; or
 - (iii) any adjustment made for actual quantities of an item of Work under paragraph (b),
- if the difference, the value of the omitted item of Work, or the adjustment respectively, is less than \$1,000.

3. Provisional sums

No Provisional Sum included in the Contract is payable by the Principal.

If in accordance with a Direction, the item of Work to which a Provisional Sum relates is carried out or supplied by the Contractor, the item of Work is to be a deemed Variation and will be priced by the Superintendent, and the difference between the Provisional Sum and the price will be added to or deducted from the Contract Sum.

If any part of such item of Work is carried out or supplied by a subcontractor, the Superintendent must allow in the price the amount payable by the Contractor to the subcontractor for the item of Work, disregarding:

- (a) any damages payable by the Contractor to the subcontractor or vice versa; and
- (b) any deduction of cash discount for prompt payment,

plus an amount for profit and attendance calculated by using the percentage thereon stated in Item 14 or elsewhere in the Contract or, if not so stated, as assessed by the Superintendent.

4. Separable portions

[\[Note to Tenderers: This clause will be updated if the Works will be divided into Separable Portions from commencement.\]](#)

Separable Portions may be directed by the Superintendent who must clearly identify for each the:

- (a) portion of the Works;
- (b) Date for Practical Completion; and
- (c) respective amounts for Security, bonus, liquidated damages and compensation for delays (all calculated pro-rata according to the ratio of the Superintendent's valuation of the Separable Portion to the Contract Sum).

[The interpretation and application of terms:](#)

- [\(d\) the WUC;](#)
- [\(e\) the Works;](#)
- [\(f\) Date for Practical Completion;](#)
- [\(g\) Date of Practical Completion;](#)
- [\(h\) Defects Liability Period;](#)
- [\(i\) Delivery Phase Activities;](#)
- [\(j\) Liquidated Damages; and](#)
- [\(k\) Contract Sum,](#)
- [\(l\) and Clauses 5, 14.1, 34 and 35.](#)

will apply separately to each Separable Portion and references therein to the Works and to WUC will mean so much of the Works and WUC as is comprised in the relevant Separable Portion.

5. Security

5.1 Provision

Security must be provided in accordance with Items 15 and ~~16. All delivered Security, other than cash or retention moneys, must be transferred in escrow~~must remain valid and enforceable until the date for its return in accordance with clause 5.4.

Security is for the purpose of ensuring the due and proper performance of the Contract and to allocate to the Contractor the risk of being out of pocket in respect of claimed entitlements of the Principal under or in connection with the Contract pending resolution of any dispute in relation to those entitlements.

5.2 Recourse

Security is subject to recourse by a party who remains unpaid after the time for payment when at least 5 days have elapsed since that party notified the other party of intention to have recourse.

The Principal's right to have recourse to Security under this clause 5.2 includes:

- (a) any debt or other moneys due from the Contractor to the Principal; and
- (b) the reasonable value of any good faith claim to money which the Principal has against the Contractor for damages (including liquidated damages), under an indemnity or otherwise relating to the Works or the WUC.

5.3 Change of security

A party providing retention moneys or cash Security may substitute another form of Security at any time. To the extent that another form of Security is provided, the other party must not deduct and must, as soon as practicable, release and return, retention moneys and cash Security.

5.4 Reduction and release

Upon the issue of the Certificate of Practical Completion, a party's entitlement to Security (other than in Item 15(e)) is to be reduced by the percentage or amount in Item 15(f) ~~or 16(d), as applicable~~, and the reduction released and returned to the other party within 14 days.

The Principal's entitlement to Security in Item 15(e) ceases 14 days after incorporation into the Works of the plant and materials for which that Security was provided.

A party's entitlement otherwise to Security ceases 14 days after issue of the Final Certificate.

Upon a party's entitlement to Security ceasing, that party must as soon as practicable release the Security and return it to the other party.

Following termination of the Contract under clause 39.4(b), 39.9 or 39.11 each party must, as soon as practicable after resolution of all Disputes which might involve or give rise to any entitlement it might have to have recourse to Security, release and return all Security provided by the other party.

5.5 ~~Trusts and interest~~Not used

~~Except where held by a government department or agency or a municipal, public or statutory authority, any portion of Security (and interest earned thereon) which is cash or retention moneys, is to be held in trust for the party providing them until the Principal or the Contractor is entitled to receive them.~~

~~Interest earned on Security not required to be held in trust will belong to the party holding that Security.~~

5.6 Deed of guarantee, undertaking and substitution

If:

- (a) a party is a related or subsidiary corporation (as defined in the *Corporations Act 2001* (Cth)); and
- (b) a form of Deed of Guarantee, Undertaking and Substitution was included in the tender documents,

that party must, within 14 days after receiving a written request from the other party, provide the Deed of Guarantee, Undertaking and Substitution duly executed and enforceable.

6. GST

6.1 General

Except where the context otherwise requires, terms used in this clause 6 which are defined in the GST Law have the meaning given to them in the GST Law.

Where a supply made under or in connection with this Contract is a progressive or periodic supply, this clause 6 applies to each component of the progressive or periodic supply as if it were a separate supply.

A reference to a party in this clause 6 includes a reference to the representative member of a GST group of which that party is a member.

The Contract Sum, and all other amounts and consideration in respect of a supply made under or in connection with the Contract, are exclusive of GST.

6.2 When GST is payable

If GST is payable by a Supplier on any supply made by that party under or in connection with the Contract, the Recipient of the supply must pay the Supplier an amount equal to the GST payable in addition to any other consideration for the supply.

If a party is required under the Contract to reimburse or indemnify another party for a cost or expense incurred by that other party, the amount to be reimbursed or indemnified will be the sum of:

- (a) the cost less any input tax credits in respect of the cost or expense to which the other party is entitled; and
- (b) to the extent that the amount is consideration for a taxable supply, an amount equal to the GST in respect of that taxable supply.

Subject to the following paragraph, the Recipient must pay any amount in respect of GST under this clause 6 in the same time and same manner as the other consideration in respect of the supply to which the GST relates.

If a valid tax invoice has not been issued by the Supplier by the time referred to in the previous paragraph, ~~and the parties have not agreed that the Recipient will issue an RCTI in respect of the supply to which the GST relates,~~ then the amount of GST is payable within 7 days after the issue of a valid tax invoice by the Supplier.

If the amount of GST paid by the Recipient under this clause 6 differs from the amount of GST payable in respect of any supply (whether because of an adjustment or otherwise), then the Recipient must pay to the Supplier, or the Supplier must refund to the Recipient, the difference (as the case may be). If an adjustment has occurred ~~and the parties have not agreed that the Recipient will issue an RCTI in respect of the supply to which the adjustment relates,~~ then the Supplier must issue an adjustment note.

6.3 RCTIs

~~The parties agree that:~~

~~(a) the Recipient will issue RCTIs for any Relevant Supply;~~

~~(b) the Supplier will not issue a tax invoice in respect of any Relevant Supply; and~~

~~(c) paragraphs (a) and (b) will cease to apply if either party ceases to be registered for GST or otherwise ceases to comply with any of the requirements for the issue of RCTIs.~~

~~Each party must immediately notify the other party if, at any time, it ceases to be registered for GST or otherwise ceases to comply with any of the requirements for the issue of RCTIs.~~

~~Each party acknowledges and warrants that, at the time of entering into this Contract, it is registered for GST and, in respect of any Relevant Supply, meets all requirements for the issue of RCTIs.~~

7. Service of notices

A notice (and any other Document) will be deemed to have been given and received if addressed and delivered personally to the Superintendent or Contractor's representative or to the relevant postal or email address in the Contract or last communicated in writing to the person giving the notice.

The following time periods apply for deemed receipt of a notice or other Document:

- (a) if sent by post, on the earliest date of:
 - (i) actual receipt; or
 - (ii) 5 days after posting;
- (b) if sent by email, the time when the email becomes capable of being retrieved by the addressee at the electronic address designated by the addressee;
- (c) if made available on an electronic document exchange system, the time that it is capable of being retrieved by the addressee on the relevant electronic document exchange system; or

(d) if otherwise, on the date of actual receipt,

but if the deemed date of receipt referred to above occurs on a Saturday, Sunday or Public Holiday, the date of receipt will be deemed to be on the day next following which is not a Saturday, Sunday or Public Holiday.

7A Design by Contractor

[Note to Tenderers: This clause is subject to further consideration based on the level of design required to be carried out by the Contractor.]

7A.1 Definitions

For the purpose of this Clause 7A, **Contractor's Design Documents** means all relevant design documents that must be prepared by the Contractor as part of the WUC and includes any specifications, data sheets, and drawings.

7A.2 Contractor's Design

- (a) The Contractor must design the part of the Work that the Contractor is required to design as identified in the Scope of Work or as directed by the Superintendent and prepare and submit all the Contractor's Design Documents in accordance with the requirements of this Contract including the Scope of Works.
- (b) The Contractor warrants that:
 - (i) the Contractor's Design Documents will comply with the requirements of the Contract, be accurate, suitable for completion of the relevant part of the Work and appropriate and fit for their intended purpose; and
 - (ii) when completed in accordance with the Contractor's Design Documents, the relevant part of the Work will be fit for their intended purpose and comply with the Contract.

7A.3 Superintendent may review Contractor's Design Documents

The Superintendent may (but is not obliged to):

- (a) review any Contractor's Design Documents, or any resubmitted Contractor's Design Documents, prepared and submitted by the Contractor; and
- (b) within 10 business days of the submission by the Contractor of such Contractor's Design Documents or resubmitted Contractor's Design Documents, reject the Contractor's Design Documents if in its reasonable opinion the Contractor's Design Documents do not comply with the requirements of the Contract.

If any Contractor's Design Documents are rejected, the Contractor must resubmit amended Contractor's Design Documents to the Superintendent.

If the Contractor commences construction of the part of the WUC to which any Contractor's Design Documents are required:

- (c) that the Superintendent has advised do not comply with this Contract; or
- (d) for which the Principal has not notified its acceptance, comment or non-compliance in accordance with this clause 7A.3,

then the Contractor does so entirely at the Contractor's own risk.

No review of, comments upon, rejection of, or failure to review or comment upon or reject, any Contractor's Design Documents prepared by the Contractor or any other direction by the Superintendent about the Contractor's Design Documents will:

- (a) relieve the Contractor from, or alter or affect, the Contractor's liabilities or responsibilities whether under the Contract or otherwise according to law; or
- (b) prejudice the Principal's rights against the Contractor whether under the Contract or otherwise according to law.

8. Contract documents

8.1 Discrepancies

Figured dimensions prevail over scaled dimensions in a discrepancy.

If either party discovers any inconsistency, ambiguity or discrepancy in any Document or between any Documents prepared for the purpose of carrying out WUC, that party must give the Superintendent written notice of it. Upon receiving such notice or otherwise becoming aware, the Superintendent must direct the Contractor as to the interpretation to be followed.

If compliance with any Direction under this clause 8.1 causes the Contractor to incur more or less cost than otherwise would have been incurred had the Direction not been given, the difference is to be assessed by the Superintendent and added to or deducted from the Contract Sum.

8.2 Principal-supplied documents

The Principal must supply the Contractor with the Documents and number of copies in accordance with Item 17.

The Documents:

- (a) remain the Principal's property;
- (b) must be returned to the Principal on written demand; and
- (c) must not be used, copied or reproduced for any purpose other than WUC.

8.3 Contractor-supplied documents

The Contractor must supply the Superintendent with the Documents and number of copies, as stated in the Contract.

If the Contractor submits Documents to the Superintendent, then except where the Contract otherwise provides:

- (a) the Superintendent is not required to check such Documents for errors, omissions, inconsistencies, ambiguities, discrepancies or compliance with the Contract;
- (b) despite clause 20, no acknowledgment or approval by the Superintendent is to be taken as affecting the Contractor's obligations; and
- (c) if the Contract requires the Contractor to obtain the Superintendent's Direction about such Documents, the Superintendent must give, within the time stated in Item 18,

the appropriate Direction including reasons if the Documents are not suitable. The Contractor must submit to the Superintendent any documents (in final form) which the Contractor intends to submit to an authority or other third party or to comply with a Legislative Requirement.

Copies of Documents supplied by the Contractor are the Principal's property and must not be used or copied otherwise than for the use, repair, maintenance or alteration of the Works.

8.4 Availability

The Contractor must make available to the Superintendent and the Principal:

- (a) on-site, one complete set of Documents affecting WUC and supplied by a party or the Superintendent; and
- (b) at the place of manufacture or assembly of any significant part of WUC completed off-site, a set of the Documents affecting that part.

8.5 Confidential information

The parties must ensure that any Documents, samples, models, patterns or other information that are clearly identified as confidential, or which by their nature are confidential (including all information relating to the Site and the Principal's operations) are kept confidential, except to the extent that:

- (a) the disclosure is necessary to enable a party to perform any of its obligations under the Contract, provided that the recipient agrees to comply with this clause 8.5 as if they were a party to the Contract;
- (b) the written consent of the other party is obtained to permit disclosure of the confidential information;
- (c) the disclosure is required by law, including under the Right to Information Act (Qld);
- (d) the disclosure is to any professional advisor who agrees to comply with this clause 8.5 as if they were a party to the Contract; ~~or~~
- (e) in the case of the Principal, the disclosure is to:
 - (i) employees, officers, Ministers or Members of Parliament of the State of Queensland;
 - (ii) to a Government Department or Instrumentality of the State of Queensland in accordance with its obligations under clause 51; or
- (f) ~~(e)~~ the disclosure is permitted under Item 19.

The Contractor must only use confidential information for the purposes related to the Contract.

If required in writing by a party, the other party must enter into a separate agreement not to disclose to anyone else any confidential matter even after the issue of a Final Certificate or earlier termination of the Contract. ~~If required by the Contractor, the Principal must ensure that the Superintendent also enters into such an agreement.~~

8.6 Media

The Contractor must not disclose any information concerning the project for distribution through any communications media without the Principal's prior written approval ~~(which must not be unreasonably withheld)~~. The Contractor must refer to the Principal any enquiries from any media concerning the project.

8.7 Privacy and Principal's Data

(a) In this clause 8.7:

(i) **Data Security Breach** means any actual or potential unauthorised access, modification, use, disclosure, destruction or loss of confidential information (including loss of access or integrity), and includes an eligible data breach (as that term is defined in the *Privacy Act 1988* (Cth)) in relation to any personal information (as that term is defined in the *Privacy Act 1988* (Cth)); and

(ii) **Security Measures** means all reasonably physical security, logical access security, network security, communications security and personnel security measures that are reasonable for a prudent, skilled and diligent contractor to perform in accordance with Good Industry Practice.

(b) When dealing with personal information (as that term is defined in the *Privacy Act 1988* (Cth)) in performing the WUC, the Contractor must comply with the requirements of the *Privacy Act 1988* (Cth) and not do anything which would be a breach of an Australian Privacy Principle.

(c) If the Contractor becomes aware that there are reasonable grounds to suspect that there has or may have been a Data Security Breach or material attempt to circumvent Security Measures in relation to any confidential information held by the Contractor as a result of this Contract or its provision of the WUC, the Contractor must:

(i) notify the Principal in writing as soon as possible; and

(ii) unless otherwise directed by the Principal, carry out an assessment under the direction of the Principal (and, to the extent relevant, in accordance with the requirements of the *Privacy Act 1988* (Cth)), or take any other action as reasonably directed by the Principal.

(d) Except to the extent required to be retained by law, upon termination of the Contract or when otherwise notified to do so by the Principal, the Contractor must promptly return or destroy (at the Principal's election) any confidential information.

9. Assignment and subcontracting

9.1 Assignment

~~Neither party may~~The Contractor must not, without the ~~other's~~Principal's prior written approval, assign the Contract or any right, benefit or interest thereunder.

The Principal may assign its rights under the Contract at any time without the Contractor's approval.

9.2 Subcontracting generally

The Contractor must not without the Superintendent's prior written approval:

- (a) subcontract or allow a subcontractor to subcontract any Work described in Item 20;
or
- (b) allow a subcontractor to assign a subcontract or any right, benefit or interest thereunder.

For the purposes of (a) and (b), the Superintendent must not unreasonably withhold approval.

With a request for approval, the Contractor must give the Superintendent written particulars of the Work to be subcontracted and the name and address of the proposed subcontractor. The Contractor must give the Superintendent any information which the Superintendent reasonably requests, including the proposed subcontract Documents without prices.

Within 14 days of the Contractor's request for approval, the Superintendent must give the Contractor written notice of approval or of the reasons why approval is not given.

Approval may be conditional upon the subcontract including:

- (i) provision that the subcontractor neither assign nor subcontract without the Contractor's written consent; and
- (ii) provisions which may be reasonably necessary to enable the Contractor to perform the Contractor's obligations to the Principal.

9.3 Selected subcontract work

If the Principal has included in the invitation to tender a list of one or more Selected Subcontractors for particular Work, the Contractor must subcontract that Work to a Selected Subcontractor and thereupon give the Superintendent written notice of that Selected Subcontractor's name.

If no subcontractor on the Principal's list will subcontract to carry out the Selected Subcontract Work, the Contractor must provide a list for the written approval of the Superintendent.

9.4 Novation

When directed by the Principal, the Contractor, without being entitled to compensation, must, as soon as practicable, execute a deed of novation in the form included in Annexure Part D, such deed being between the Principal, the Contractor and the subcontractor or Selected Subcontractor stated in Item 21 for the relevant part of WUC.

9.5 Contractor's responsibility

Except where the Contract otherwise provides, the Contractor is liable to the Principal for the acts, defaults and omissions of subcontractors (including Selected Subcontractors) and employees and agents of subcontractors as if they were those of the Contractor.

Approval to subcontract does not relieve the Contractor from any liability or obligation under the Contract.

9.6 Subcontractor warranties

- (a) The Contractor must, prior to and as a condition of Practical Completion, provide to the Principal with those warranties required by Good Industry Practice or set out in Item 20A from the relevant subcontractor undertaking or supplying the Work or item the subject of the warranty.
- (b) Each of the warranties must be:
 - (i) for the relevant subcontractor's standard warranty period; and
 - (ii) in a form reasonably acceptable to the Principal.
- (c) The Contractor must ensure that the warranties required under clause 9.6(a) are either:
 - (i) directly enforceable by the Principal; or
 - (ii) assigned by the Contractor to the Principal on the Date of Practical Completion or earlier termination of this Contract.

The Principal may, and the Contractor must, take any action required to effect or enforce an assignment under this clause 9.6(c).

10. Intellectual property rights

10.1 Documents relating to the WUC

- (a) In this clause 10.1, **Contractor's Documents** means documents or other property created by the Contractor for the purpose of this Contract or the WUC.
- (b) Subject to each party retaining title to its Background IP, title to, copyright in and other Intellectual Property Rights in the Contractor's Documents vests in the Principal on creation and the Principal grants the Contractor, during the term of the Contract, an irrevocable licence to use:
 - (i) the Contractor's Documents; and
 - (ii) the Principal's Background IP,in each case in connection with the performance of the WUC including the right to sub-licence the licence to the Contractor's contractors and consultants to use the Contractor's Documents and the Principal's Background IP during the term of the Contract in connection with the performance of the WUC.
- (c) The Contractor grants or must procure the granting to the Principal of a non-exclusive, royalty-free, perpetual, irrevocable, transferable and sub-licensable licence to use the Contractor's Background IP in conjunction with the Contractor's Documents.
- (d) The Principal warrants that, unless otherwise provided in the Contract, ~~design, materials, Documents and methods of working, each specified in the Contract or provided or directed by the Principal or the Superintendent, do~~ the Principal's Background IP does not infringe any Intellectual Property Right.

(e) The Contractor warrants that the Contractor's Background IP, the Contractor's Documents and any other design, materials, Documents and methods of working, each provided by the Contractor, do not infringe any Intellectual Property Right.

(f) Each party indemnifies the other against such respective infringements.

10.2 Moral Rights

The Contractor must obtain any consents and waivers from the Contractor's personnel in relation to their Moral Rights, to the fullest extent possible under Laws for their Moral Rights, to ensure the Principal's use and enjoyment of the Contractor's Documents and other property licensed or assigned to the Principal under the Contract, by the Principal or persons authorised by the Principal under the Contract.

11. Legislative requirements

11.1 Compliance

The Contractor must satisfy all Legislative Requirements in connection with the carrying out of WUC except:

- (a) those in Item 22(a); and
- (b) those directed by the Superintendent to be satisfied by or on behalf of the Principal.

The Contractor, upon finding that a Legislative Requirement is at variance with the Contract, must, as soon as practicable, give the Superintendent written notice of the variance.

11.2 Changes

If a Legislative Requirement:

- (a) necessitates a change:
 - (i) to the Works;
 - (ii) to so much of WUC as is identified in Item 22(b);
 - (iii) to fees or charges, including the introduction of new fees or charges; or
 - (iv) being the provision of services by a municipal, public or other statutory authority in connection with WUC;
- (b) comes into effect after the 14th day before the ~~closing of tenders~~ Date of Contract but could not reasonably then have been anticipated by a competent contractor exercising Good Industry Practice; and
- (c) causes the Contractor to incur more or less cost than otherwise would have been incurred,

the difference is to be assessed by the Superintendent and added to or deducted from the Contract Sum.

11.3 Taxes, duties and levies

- (a) Subject to clause 11.3(b), the Contractor must pay any fees, charges, levies and taxes imposed by any authority concerning the WUC.

- (b) Any portable long service leave levy or workplace health and safety fee imposed concerning the WUC must be paid by the party specified in Item 22A. If the party specified in Item 16 is the Contractor, if requested by the Principal, the Contractor must provide evidence of payments imposed under this clause 11.3(b).

12. Protection of people and property

12.1 Protection of people and property

Insofar as compliance with the Contract permits, the Contractor must:

- (a) take measures necessary to protect people and property;
- (b) avoid unnecessary interference with the passage of people and vehicles; and
- (c) prevent nuisance and unreasonable noise and disturbance.

If the Contractor damages property, the Contractor must, as soon as practicable, rectify the damage and pay any compensation which the law requires the Contractor to pay.

If the Contractor fails to comply with an obligation under this clause 12.1, the Principal, after the Superintendent has given reasonable written notice to the Contractor and in addition to the Principal's other rights and remedies, may have the obligation performed by others. The cost thereby incurred is to be certified by the Superintendent as moneys due from the Contractor to the Principal.

12.2 Sufficient information to evaluate WHS risks

- (a) The Contractor warrants that:
- (i) it has the capability and expertise to perform its WHS Requirements; and
 - (ii) it has made enquiries and investigations and fully informed itself as to the accuracy, sufficiency and completeness of all available information relevant to work health and safety risks associated with the Site and performing the WUC to enable the Contractor to properly assess and control those and other risks.
- (b) The Principal will, on request from the Contractor, give to the Contractor any information in its power, custody or control identified by the Contractor as relevant to the WHS Requirements.

12.3 Contractor's WHS obligations

The Contractor must:

- (a) comply with the WHS Requirements;
- (b) keep the Principal fully informed of work health and safety matters arising out of, or in any way concerning, the WUC immediately on becoming aware of the matter, including providing copies of any communication with an authority;
- (c) except to the extent that to do so would prevent it performing the WUC under clause 12.3(a);

- (i) do all things to assist the Principal in discharging its obligations under the WHS Laws and refrain from doing anything that may impede the Principal in discharging its obligations under the WHS Laws;
- (ii) not do or omit to do anything which would cause the Principal to breach its obligations under the WHS Laws; and
- (iii) immediately comply with directions on work health and safety issued by any relevant authority or by the Principal;
- (d) pay all fees and charges payable under the WHS Laws in performing the WUC, unless notified otherwise by the Principal;
- (e) fully participate in any audit, inspection or investigation by the Principal, or a third party authorised by the Principal, for work health and safety including by providing access to the Contractor's personnel, all documents, the Site and facilities to enable any audit, inspection or investigation to take place. If any non-conformance is detected, the Contractor must immediately rectify the non-conformance; and
- (f) consult, cooperate and coordinate with the Principal and any other person with a concurrent duty for work health and safety.

12.4 **~~12.2~~ Principal contractor**

- (a) If Item 23(a) provides that this clause ~~12.2~~12.4 applies:
 - (i) ~~(a)~~ to the extent permitted by law, the Principal:
 - (A) ~~(i)~~ appoints the Contractor as Principal Contractor for the Site or relevant part of the Site identified in Item 23(b);
 - (B) ~~(ii)~~ authorises the Contractor to discharge the duties of a Principal Contractor in respect of the Site or relevant part of the Site, as the case may be; and
 - (C) ~~(iii)~~ gives the Contractor management or control of the Site or relevant part of the Site, as the case may be, to the extent necessary to discharge the duties imposed on a Principal Contractor;
 - (ii) ~~(b)~~ the Contractor accepts the appointment and will discharge those duties; and
 - (iii) ~~(c)~~ to the extent permitted by law, the Contractor's appointment as Principal Contractor under this clause ~~12.2~~12.4 will cease at 4:00 pm on the Date of Practical Completion, unless:
 - (A) revoked by the Principal giving 10 Business Days' notice to the Contractor of its revocation; or
 - (B) the Principal terminates the Contract under any provision of the Contract or by law.
- (b) The Principal Contractor must:

- (i) give a monthly report to the Principal stating how the Contractor has and will take responsibility for all work health and safety matters while performing the WUC and any matters that have arisen or may arise concerning the WHS Laws;
 - (ii) display signs that are clearly visible from outside the Site or relevant part of the Site identifying the Contractor as the Principal Contractor and stating the contact telephone numbers of the Contractor (including an after hours emergency telephone number);
 - (iii) comply with the requirements of the WHS Laws arising from its engagement as Principal Contractor;
 - (iv) communicate and cooperate with any relevant authority in relation to work health and safety matters while performing the WUC; and
 - (v) provide to the Principal a copy of any correspondence or communication to or received from any relevant authority in relation to work health and safety on the day that the correspondence is sent or received (as the case may be).
- (c) Where the Contractor is not appointed by the Principal as the Principal Contractor or where the Principal directs the Contractor to stop acting as the Principal Contractor, the Contractor must:
 - (i) acknowledge that the Principal (or some other entity) is the Principal Contractor for the purposes of the WHS Laws and comply with any additional policies and procedures for that workplace, as advised by the Principal Contractor;
 - (ii) not interfere with, disturb, impede or obstruct the Principal Contractor's performance of the Principal Contractor's obligations, and must cooperate and comply with the Principal Contractor's directions; and
 - (iii) if requested by the Principal, must co-operate with the Principal in completing a hazard and risk identification process for the Site or relevant part of the Site to identify potential hazards and develop a system to control those hazards.
- (d) The Contractor must ensure that its subcontractors are subject to the following provisions:
 - (i) that the subcontractor acknowledges the appointment of a party as the Principal Contractor for the purposes of the WHS Laws;
 - (ii) that the subcontractor will not interfere with, disturb, impede or obstruct the carrying out by the Principal Contractor of the Principal Contractor's obligations, and will cooperate and comply with any direction of the Principal Contractor; and
 - (iii) that the subcontractor will not be entitled to make any claim against the Contractor arising out of or in any way under this clause 12.4, any direction of the Principal Contractor or otherwise with any requirement of the Principal Contractor.

12.5 Contractor's WHS Management Plan

- (a) The Contractor must ensure that the WHS Management Plan is in a form acceptable to the Principal within 30 Business Days of the Date of Contract and in any event, prior to accessing the Site under clause 24.1.
- (b) The Principal may at any time require the Contractor to amend the WHS Management Plan to comply with the Contract and the WHS Laws and WHS Policies and Procedures.
- (c) No comment on nor any review (or any failure to comment on or review) by the Principal of the Contractor's WHS Management Plan provided under this clause 12.5 will affect any warranty or guarantee given by the Contractor or relieve the Contractor of any of its liabilities, the WUC or the WHS Requirements.

12.6 Heavy Vehicle National Law

To the extent that the Heavy Vehicle National Law applies to the WUC, the Contractor must comply and take all reasonable steps to ensure that the Principal does not form part of the chain of responsibility including as a consignor or consignee for goods (as those terms are defined in the Heavy Vehicle National Law).

12.7 Non-compliance with WHS Requirements

- (a) Subject to clause 12.4(b), if the Contractor or any of the Contractor's personnel fails to comply with any WHS Requirement:
 - (i) the non-compliance must be promptly corrected; and
 - (ii) the Contractor must promptly take all steps to avoid reoccurrence of the non-compliance.
- (b) Any failure by the Contractor or any of the Contractor's personnel to comply with a WHS Requirement, or any failure to comply with a WHS Requirement which has or could have material consequences, constitutes a Contractor default. In the event of such a failure, despite clause 39 and without limiting any other right or remedy available to the Principal, the Principal may do one or more of the following:
 - (i) immediately direct the removal of any person from the Site;
 - (ii) immediately suspend the WUC until the failure has been remedied; or
 - (iii) either immediately or at any time following suspension of the WUC under clause 39, terminate the Contract by notice on the Contractor.

12.8 Evidence of compliance

- (a) The Principal may at any time and from time to time request the Contractor to provide evidence of the Contractor's compliance or non-compliance with this clause 12 and the WHS Laws or any other Legislative Requirements concerning work health and safety.
- (b) The evidence referred to in clause 12.8(a) must be to the satisfaction of the Principal. The Contractor must provide the evidence to the Principal within a

reasonable time from the request of the Principal and in any event within 5 Business Days.

- (c) The provision of a statutory declaration executed by an officer of the Contractor which confirms the Contractor's compliance or lack of compliance with this clause 12 will be satisfactory evidence to the Principal so long as where the statutory declaration provides that the Contractor has not complied with clause 12, the statutory declaration must set out in reasonable detail the specific areas of non-compliance.

12.9 Reporting of Incidents

- (a) If an Incident occurs the Contractor must:
- (i) ensure that any worker who is injured receives medical assistance for any injury (regardless of the nature of the injury) and that a record is kept (with a copy provided to the Principal) of the nature of the injury and the treatment provided;
 - (ii) immediately notify the Incident to the Principal, and if required, to any relevant authority under the WHS Laws;
 - (iii) provide a copy of any notification or report submitted by the Contractor to any authority about the Incident on the day that it is submitted; and
 - (iv) if required by the Principal or required by Legislative Requirement, perform a full investigation and provide a report for any Incident to the Principal as soon as reasonably possible, and in any event, within a time period so the Principal can comply with the Legislative Requirement.
- (b) If the Principal wishes to conduct its own investigation into any Incident (whether or not the Principal's Personnel or a third party engaged by the Principal conducts the investigation):
- (i) the Contractor must cooperate fully with the Principal's Incident investigation including by providing prompt information about, and access to, relevant documents and the Contractor's personnel; and
 - (ii) to the extent that the Incident was caused or contributed to by the Contractor or the Contractor's personnel, the costs and expenses incurred by the Principal in investigating the Incident will be a debt due and payable by the Contractor.
- (c) If the Principal forms the view, on the occurrence (or imminent risk of the occurrence) of an Incident, that the Contractor is not taking adequate measures to manage the Incident or control or eliminate the adverse impact or the risk of an Incident arising in the future, the Principal may take any action to overcome and alleviate the cause and consequences of any Incident.

13. Urgent protection

If urgent action is necessary to protect WUC, other property or people, and the Contractor fails to take the action, the Superintendent may take the necessary action in addition to any other remedies of the Principal. If the action should have been taken by the Contractor at its

own cost, the Superintendent must certify the cost incurred as moneys due from the Contractor to the Principal.

If time permits, the Superintendent must give the Contractor prior written notice of the intention to take action under this clause 13.

14. Care of WUC and reinstatement of damage

14.1 Care of WUC

Except as provided in clause 14.3, the Contractor is responsible for care of:

- (a) the whole of WUC and the Works from and including the date of commencement of WUC to 4:00 pm on the Date of Practical Completion, at which time responsibility for the care of the Works (except to the extent provided in paragraph (b)) passes to the Principal; and
- (b) outstanding Work and items to be removed from the Site by the Contractor after 4:00 pm on the Date of Practical Completion until completion of outstanding Work or compliance with clauses 29, 30 and 35.

Without limiting the generality of (a), the Contractor is responsible for the care of unfixed items accounted for in a Progress Certificate and the care and preservation of things entrusted to the Contractor by the Principal or brought onto the Site by subcontractors for carrying out WUC.

14.2 Reinstatement

If loss or damage other than that caused by an Excepted Risk occurs to WUC during the period of the Contractor's care, the Contractor must rectify it at its own cost.

If loss or damage is caused by any of the Excepted Risks (whether or not in combination with other risks), the Contractor must, to the extent directed by the Superintendent, rectify that loss or damage. Such rectification is a deemed Variation.

If loss or damage is caused by a combination of Excepted Risks and other risks, the Superintendent must, in pricing the Variation, assess the proportional responsibility of the parties.

14.3 Excepted risks

The Principal is liable for loss and damage caused by any of the following Excepted Risks:

- (a) any negligent act or omission of the Superintendent, the Principal or its consultants, agents, employees or other contractors (not being employed by the Contractor).
- (b) any risk specifically excepted elsewhere in the Contract.
- (c) war, invasion, acts of foreign enemies, hostilities (whether war be declared or not), civil war, rebellion, revolution, insurrection or military or usurped power, martial law or confiscation by order of any government or public authority.
- (d) ionising radiations or contamination by radioactivity from any nuclear fuel or from any nuclear waste from the combustion of nuclear fuel not caused by the Contractor or its subcontractors or either's employees or agents.

- (e) use or occupation of any part of WUC by the Principal or its consultants, agents or other contractors (not being employed by the Contractor).
- (f) Defects in the design of WUC, other than design provided by the Contractor.

15. Damage to persons and property other than WUC

15.1 Indemnity by contractor

Insofar as this clause 15 applies to property, it applies to property other than WUC.

The Contractor indemnifies the Principal against:

- (a) loss of or damage to the Principal's property; ~~and~~
- (b) claims in respect of personal injury or death or loss of, or damage to, any other property; ~~and~~
- (c) a breach by the Contractor of any Legislative Requirement or WHS Requirements,

arising out of or as a consequence of the carrying out of WUC. The indemnity is to be reduced proportionally to the extent that the act or omission of the Superintendent, the Principal or its consultants, agents or other contractors (not employed by the Contractor) ~~may have~~ contributed to the injury, death, loss or damage.

This clause 15 does not apply to:

- (i) the extent that the Contractor's liability is limited by another provision of the Contract;
- (ii) things for the care of which the Contractor is responsible under clause 14.1;
- (iii) damage which is the unavoidable result of the carrying out of WUC; ~~and~~
- (iv) claims in respect of the Principal's right to have WUC carried out; ~~and~~
- (v) monetary penalties arising under WHS Laws where indemnity or other similar arrangement for such a penalty is expressly prohibited,

and does not limit any other right of the Principal to be indemnified by the Contractor.

15.2 Indemnity by principal

The Principal indemnifies the Contractor in respect of:

- (a) damage referred to clause 15.1(iii); and
- (b) claims referred to in clause 15.1(iv).

15.3 Neither party liable for Consequential Loss

- (a) In this clause 15.3, **Consequential Loss** means loss of profit, loss under power sales contracts and electricity derivatives, the cost of finance (but not interest), loss of business, opportunity or third party contract, loss resulting from business interruption, loss of anticipated savings, loss of revenue, loss of business reputation, loss of use of money and loss of goodwill, but does not include any amount or part of an amount expressly provided to be paid under this Contract.

- (b) Subject to clause 15.3(c), neither party will be liable to the other party for Consequential Loss in connection with this Contract, whether arising in contract (including under any indemnity), tort (including in negligence) or otherwise.
- (c) The exclusion of liability for Consequential Loss does not apply to the liability of the Contractor arising out of:
- (i) claims by any person in respect of illness, personal injury or death;
 - (ii) loss or damage to property;
 - (iii) events or circumstances in respect of which insurance proceeds are received by or for the benefit of the Contractor or would have been received if:
 - (A) the Contractor complied with its obligations under the Contract and the policy of insurance and diligently pursued recovery under its insurances; and
 - (B) the insurer had not denied or limited its liability in reliance on this limitation of liability clause;
 - (iv) infringement of Intellectual Property Rights or confidentiality;
 - (v) wilful misconduct or fraud on the part of the Contractor or any party for who the Contractor is responsible;
 - (vi) a breach of a Legislative Requirement; or
 - (vii) any abandonment of the Contract by the Contractor,
- or the liability of the Contractor which by law the Contractor cannot contract out of.

15.4 Contractor's liability limited to a monetary cap

- (a) Subject to clause 15.4(b), the Contractor's aggregate liability to the Principal, arising out of the Contractor's performance or non-performance of its obligations under the Contract, whether arising in contract (including under any indemnity), tort (including negligence) or otherwise, will not exceed the amount in Item 23A (**Contractor's Liability Cap**).
- (b) The Contractor's Liability Cap does not apply to the liability of the Contractor in respect of:
- (i) any liquidated damages payable under the Contract;
 - (ii) claims by any person in respect of illness, personal injury or death;
 - (iii) loss or damage to property;
 - (iv) events or circumstances in respect of which insurance proceeds are received by or for the benefit of the Contractor or would have been received if:
 - (A) the Contractor complied with its obligations under the Contract and the policy of insurance and diligently pursued recovery under its insurances; and

- (B) the insurer had not denied or limited its liability in reliance on this limitation of liability clause;
 - (v) infringement of Intellectual Property Rights or confidentiality;
 - (vi) wilful misconduct or fraud on the part of the Contractor or any party for who the Contractor is responsible;
 - (vii) a breach of a Legislative Requirement; or
 - (viii) any abandonment of the Contract by the Contractor,
- or the liability of the Contractor which by law the Contractor cannot contract out of.

16. Insurance of the works

The Alternative in Item 24(a) applies.

Alternative 1: Contractor to insure

Before commencing WUC, the Contractor must insure all the things referred to in clause 14.1 against loss or damage resulting from any cause until the Contractor ceases to be responsible for their care.

Without limiting the generality of the obligation to insure, such insurance must cover the Contractor's liability under clause 14.2 and things in storage off-site and in transit to the Site but may exclude:

- (a) the cost of making good fair wear and tear or gradual deterioration, but not the loss or damage resulting therefrom;
- (b) the cost of making good faulty design, workmanship and materials, but not the loss or damage resulting therefrom;
- (c) consequential loss of any kind, but not loss of or damage to the Works;
- (d) damages for delay in completing or for the failure to complete the Works;
- (e) loss or damage resulting from ionising radiations or contamination by radioactivity from any nuclear fuel or from any nuclear waste from the combustion of nuclear fuel resulting from any cause; and
- (f) loss or damage resulting from the Excepted Risks referred to in clauses 14.3(b) and 14.3(c).

The insurance cover will be for an amount not less than the aggregate of the:

- (i) Contract Sum;
- (ii) provision in Item 24(b) to provide for costs of demolition and removal of debris;
- (iii) provision in Item 24(c) for consultants' fees;
- (iv) value in Item 24(d) of any materials or things to be supplied by the Principal for the purposes of WUC; and
- (v) additional amount or percentage in Item 24(e) of the total of the Items referred to in (i) to (iv).

Insurance must:

- (A) be in the joint names of the parties;
- (B) cover the parties and all subcontractors whenever engaged in WUC for their respective rights, interests and liabilities;
- (C) be with an insurer and in terms approved in writing by the Principal (who must not unreasonably withhold its approval), except where the Contract otherwise provides; and
- (D) be maintained until the Contractor ceases to be responsible under clause 14.1 for the care of anything.

Alternative 2: Principal to insure

Before the Date of Contract, the Principal must insure WUC in the terms of the policy included in the tender documents and nominating or stating the insurer. The Principal must maintain such insurance while the Contractor has an interest in WUC.

17. Public liability insurance

The Alternative in Item 25(a) applies.

Alternative 1: Contractor to insure

Before commencing WUC, the Contractor must effect and maintain for the duration of the Contract, a Public Liability Policy.

The policy is to:

- (a) be in the joint names of the parties;
- (b) cover the:
 - (i) respective rights and interests; and
 - (ii) liabilities to third parties,of the parties, the Superintendent and subcontractors from time to time, whenever engaged in WUC;
- (c) cover the parties' respective liability to each other for loss or damage to property (other than property required to be insured by clause 16) and the death of or injury to any person (other than liability which the law requires to be covered under a workers compensation insurance policy);
- (d) be endorsed to cover the use of any Construction Plant not covered under a comprehensive or third-party motor vehicle insurance policy;
- (e) provide insurance cover for an amount in respect of any one occurrence of not less than the sum in Item 25(b); and
- (f) be with an insurer and otherwise in terms both approved in writing by the Principal (who must not unreasonably withhold its approval).

Alternative 2: Principal to insure

Before the Date of Contract, the Principal must effect in relation to WUC a Public Liability Policy, in the terms of the policy included in the tender documents, which nominates or states the insurer. The Principal must maintain such insurance while the Contractor has an interest in WUC.

18. Other insurance required

18.1 ~~18.~~ Insurance of employees

Before commencing WUC, the Contractor must, to the extent permitted by law, insure against statutory and common law liability for death of or injury to persons employed by the Contractor. The insurance cover must be maintained until completion of all WUC.

Where permitted by law, the insurance policy or policies must provide indemnity for the Principal's statutory liability to the Contractor's employees.

The Contractor must ensure that all subcontractors have similarly insured their employees.

The Contractor must also effect and maintain all insurances required by Legislative Requirements.

18.2 Motor vehicle insurance

The Contractor must effect and maintain comprehensive motor vehicle insurance for all vehicles used in respect of the WUC.

18.3 Professional indemnity insurance

[Note to Tenderers: This clause is subject to further consideration based on the level of design required to be carried out by the Contractor.]

Before commencing the Contractor's Design Obligations, the Contractor must effect and maintain professional indemnity insurance with levels of cover not less than stated in Item 25A(a).

The insurance must be maintained until the Final Certificate is issued and thereafter for the period as stated in Item 25A(b).

The Contractor must ensure that every Consultant, if within a category stated in Item 25A(c), must effect and maintain professional indemnity insurance with levels of cover not less than stated in Item 25A(c) applicable to that category.

Each such Consultant's professional indemnity insurance must be maintained until the Final Certificate is issued and thereafter for the period as stated in Item 25A(d).

18.4 Plant and equipment insurance

[Note to Tenderers: This clause is intended to apply to plant, machinery, tools and equipment owned or supplied by the Contractor in connection with the performance of the Works.]

Before bringing any Construction Plant on to the Site, the Contractor must effect and maintain plant and equipment insurance for all Construction Plant.

The insurance must:

- (a) be for not less than the full replacement or reinstatement value of the Construction Plant, or such other amount as stated in Item 25B; and
- (b) be maintained for the duration of the Contractor's use of the Contractor's Plant and Equipment in connection with the Works.

The insurance must cover loss, damage or destruction to the Construction Plant from any cause reasonably insurable in the Australian insurance market, including while the Construction Plant is on Site, in transit, in storage or otherwise incidental to the performance of the WUC.

The Contractor bears all risk of loss of or damage to the Construction Plant and is solely responsible for the repair, replacement or reinstatement of the Construction Plant, whether or not such loss or damage is covered by insurance.

19. Inspection and provisions of insurance policies

19.1 Proof of insurance

Before the Contractor commences WUC and whenever requested in writing by the other party, a party liable to insure must provide satisfactory evidence of such insurance effected and maintained.

The insurance must not limit liabilities or obligations under other provisions of the Contract.

19.2 Failure to produce proof of insurance

If, after being so requested, a party fails to, as soon as practicable, provide satisfactory evidence of compliance with clause 16, 17 or ~~18~~[Error! Reference source not found.](#), then without prejudice to other rights or remedies, the other party may insure and the cost must be certified by the Superintendent as moneys due from the party in default to the other party.

If the defaulting party is the Contractor, the Principal may refuse payment until such evidence is produced by the Contractor.

19.3 Notices from or to insurer

The party insuring under clause 16 or 17 must ensure that each insurance policy contains provisions acceptable to the other party which:

- (a) require the insurer to inform both parties, whenever the insurer gives a party or a subcontractor a notice in connection with the policy;
- (b) provide that a notice of claim given to the insurer by either party, the Superintendent or a subcontractor will be accepted by the insurer as a notice of claim given by both parties, the Superintendent and the subcontractor; and
- (c) require the insurer, whenever the party fails to maintain the policy, as soon as practicable, to give written notice to both parties and prior to cancellation of the policy.

19.4 Notices of potential claims

A party must, as soon as practicable, inform the other party in writing of any occurrence that may give rise to a claim under an insurance policy required by clause 16 or 17 and must keep

the other party informed of subsequent developments concerning the claim. The Contractor must ensure that subcontractors in respect of their operations similarly inform the parties.

19.5 Settlement of claims

Upon settlement of a claim under the insurance required by clause 16:

- (a) to the extent that reinstatement has been the subject of a payment or allowance by the Principal to the Contractor, if the Contractor has not completed such reinstatement, insurance moneys received must, if requested by either party, be paid into an agreed bank account in the joint names of the parties. As the Contractor reinstates the loss or damage, the Superintendent must certify against the joint account for the cost of reinstatement; and
- (b) to the extent that reinstatement has not been the subject of a payment or allowance by the Principal to the Contractor, the Contractor is entitled immediately to receive from insurance moneys received, the amount of such moneys so paid in relation to any loss suffered by the Contractor.

19.6 Cross liability

Any insurance required to be effected in joint names in accordance with the Contract must include a cross liability clause in which the insurer agrees to waive all rights of subrogation or action against any of the persons constituting the insured and for the purpose of which the insurer accepts the term "insured" as applying to each of the persons constituting the insured as if a separate policy of insurance had been issued to each of them (subject always to the overall sum insured not being increased thereby).

20. Superintendent

The Principal must ensure that there is a Superintendent at all times and that the Superintendent when acting as certifier performs all aspects of the role and functions reasonably, honestly and in good faith accordance with the Contract.

The Contractor acknowledges that the Superintendent may be an employee of the Principal or may have a commercial relationship with the Principal beyond the performance of the role of Superintendent under this Contract. The Contractor must not bring any claim against the Principal by reason of the relationship between the Principal and the Superintendent.

Except as otherwise specified in the Contract or notified in writing by the Principal, the Superintendent has full authority to act on behalf of the Principal in connection with the Contract.

Except where the Contract otherwise provides, the Superintendent may give a Direction orally but must confirm it in writing as soon as practicable. If the Contractor requests in writing the Superintendent to confirm an oral Direction, the Contractor is not bound to comply with the Direction until the Superintendent does so.

21. Superintendent's representative

The Superintendent may from time to time, by notice in writing to the parties, appoint individuals to exercise functions of the Superintendent provided that:

- (a) no aspect of any function is at any one time the subject of delegation to more than one Superintendent's Representative;
- (b) delegation does not prevent the Superintendent exercising any function;
- (c) the notice contains:
 - (i) the Superintendent's Representative's name, contact details and delegated functions; and
 - (ii) termination of any relevant prior appointment; and
- (d) if the Contractor makes a reasonable objection to the appointment of a Superintendent's Representative, the Superintendent terminates the appointment.

The Superintendent may, by notice in writing to the parties, terminate any such appointment.

22. Contractor's representative

The Contractor must superintend WUC personally or by a competent representative. Matters within a Contractor's representative's knowledge (including Directions received) will be deemed to be within the Contractor's knowledge.

The Contractor must, as soon as practicable, give the Superintendent written notice of the representative's name and any subsequent changes.

If the Superintendent makes a reasonable objection to the appointment of a representative, the Contractor must terminate the appointment and appoint another representative.

23. Contractor's employees and subcontractors

The Superintendent may direct the Contractor to have removed, within a stated time, from the Site or from any activity of WUC, any person employed on WUC who, in the Superintendent's opinion, is incompetent, negligent or guilty of misconduct.

24. Site

24.1 ~~Possession~~Access

Provided the Contractor has complied with ~~clause~~clauses 5, 12.5(a) and 19.1, the Principal must before the expiry of the time in Item 26, give the Contractor ~~possession of~~ sufficient of access to the Site for commencement of WUC on the Site. If the Principal has not given the Contractor ~~possession of~~ access to the whole Site, the Principal must give the Contractor ~~possession of~~ access to such further portions of the Site as may, from time to time, be necessary for carrying out WUC. Subject to clause 39.7, delay by the Principal in giving ~~possession~~access will not be a breach of contract.

~~Possession of~~Access to the Site confers on the Contractor a right to only such use ~~and control~~ as is necessary to enable the Contractor to carry out WUC and excludes camping, residential purposes and any purpose not connected with WUC, unless approved by the Superintendent.

24.2 Access for principal and others

The Principal and the Principal's employees, consultants and agents may at any time after reasonable written notice to the Contractor have access to any part of the Site for any purpose. The Contractor must permit persons engaged by the Principal to carry out Work on the Site other than WUC and must cooperate with them. The Principal must give to the Contractor the names and roles of the persons so engaged.

The Contractor must at all reasonable times give the Superintendent access to WUC.

The Principal must ensure that none of the persons referred to in this clause 24.2 impedes the Contractor.

24.3 Minerals, fossils and relics

Valuable minerals, fossils, articles or objects of antiquity or of anthropological or archaeological interest, treasure trove, coins and articles of value found on the Site will, as between the parties, be and remain the property of the Principal. As soon as practicable, after the discovery of these things, the Contractor must:

- (a) take precautions to prevent their loss, removal or damage; and
- (b) give the Superintendent written notice of the discovery.

All costs so incurred by the Contractor are to be assessed by the Superintendent and added to the Contract Sum.

24.4 Non-reliance

The Contractor:

- (a) warrants that it did not in any way rely upon:
 - (i) any information, data, representation, statement or document made by or provided to the Contractor by the Principal or anyone on behalf of the Principal; or
 - (ii) the accuracy or adequacy of any such information, data, representation, statement or document,
for the purposes of entering into the Contract, except to the extent that any such information, data, representation, statement or document forms part of the Contract (and then such reliance is only for the purpose of the rights expressly conferred on the Contractor under this Contract);
- (b) warrants that it enters into this Contract based on its own investigations, interpretations, deductions, information and determinations; and
- (c) acknowledges that it is aware that the Principal has entered into the Contract relying upon the warranties in paragraphs (a) and (b).

25. Latent conditions

25.1 Notification

As soon as practicable after the Contractor becomes aware of a Latent Condition, and where possible before the Latent Condition is disturbed, the Contractor must give the Superintendent written notice of the general nature of that Latent Condition.

If required by the Superintendent after receiving that notice, the Contractor must, as soon as practicable, give the Superintendent a written statement of:

- (a) the Latent Condition and the respects in which it differs materially;
- (b) the additional Work, resources, time and cost which the Contractor estimates to be necessary to deal with the Latent Condition, including any remediation plans where applicable; and
- (c) other details reasonably required by the Superintendent.

25.2 Deemed variation

The effect of the Latent Condition will be a deemed Variation, priced to include the Contractor's costs for each compliance with clause 25.1, but not to include:

- (a) WUC carried out; or
- (b) additional cost incurred,

more than 28 days before the date on which the Contractor gave the notice required by the first paragraph of clause 25.1.

26. Setting out works

26.1 Setting out

The Principal must ensure that the Superintendent gives the Contractor the data, Survey Marks and like information necessary for the Contractor to set out the Works, together with those Survey Marks specified in the Contract. Thereupon the Contractor must set out the Works in accordance with the Contract.

26.2 Errors in setting out

The Contractor must notify the Superintendent of any error in the position, level, dimensions or alignment of any WUC and must rectify any error unless, within 3 days of receiving the Contractor's notice, the Superintendent directs the Contractor otherwise.

If the error was caused by incorrect data, Survey Marks or information (in each case) given by the Superintendent, the cost incurred by the Contractor in rectifying the error is to be assessed by the Superintendent and added to the Contract Sum.

26.3 Care of survey marks

The Contractor must keep in their true positions all Survey Marks supplied by the Superintendent.

The Contractor must reinstate any Survey Mark disturbed, after notifying the Superintendent unless the Superintendent within 3 days directs otherwise.

If the disturbance was caused by the Superintendent or a person referred to in clause 24.2 other than the Contractor, the cost incurred by the Contractor in reinstating the Survey Mark is to be assessed by the Superintendent and added to the Contract Sum.

27. Cleaning up

The Contractor must keep the Site and WUC clean and tidy and regularly remove rubbish and surplus material.

Within 14 days after the Date of Practical Completion, the Contractor must remove Temporary Works and Construction Plant. The Superintendent may extend the time to enable the Contractor to perform remaining obligations.

If the Contractor fails to comply with the preceding obligations in this clause 27, the Superintendent may direct the Contractor to rectify the non-compliance and the time for rectification.

If the Contractor fails to comply with such a Direction and that failure has not been made good within 5 days after the Contractor receives written notice from the Superintendent that the Principal intends to have the subject Work carried out by others:

- (a) the Principal may have that Work so carried out; and
- (b) the Superintendent must certify the cost incurred as moneys due from the Contractor to the Principal.

The rights given by (a) and (b) are additional to any other rights and remedies.

28. Materials, labour and construction plant

Except where the Contract otherwise provides, the Contractor must supply everything necessary for the proper performance of the Contractor's obligations and discharge of the Contractor's liabilities.

In respect of any materials, machinery or equipment to be supplied by the Contractor in connection with the Contract, the Superintendent may direct the Contractor to:

- (a) supply particulars of the mode and place of manufacture, the source of supply, the performance capacities and other related information; and
- (b) arrange reasonable inspection at such place or source of supply by the Superintendent, the Principal and persons authorised by the Principal.

The Superintendent may give the Contractor a written Direction to not remove materials or Construction Plant from the Site. Thereafter, the Contractor must not remove them without the Superintendent's prior written approval (which must not be unreasonably withheld).

29. Quality

29.1 Quality of material and work

Unless otherwise provided, the Contractor must use suitable new materials and due care and skill.

If the Contractor elects to utilise prefabricated materials, it must ensure the suitability and fitness for purpose of those materials for incorporation into the Work. Any review, input, feedback or approval provided by the Principal in respect of use of prefabricated materials does not limit or reduce the Contractor's liability.

29.2 Quality assurance

If the Contract elsewhere requires further quality assurance, the Contractor must plan, establish and maintain a conforming quality system.

The Contractor must ensure that the Superintendent has access to this quality system so as to enable monitoring and quality auditing.

Any such quality system established by the Contractor is to be used only as an aid to achieving compliance with the Contract and to document such compliance. The establishment and usage of such a system does not discharge the Contractor's other obligations under the Contract.

29.3 Defects

If the Superintendent becomes aware of any Defect, the Superintendent must as soon as practicable give the Contractor written details. If the Defect has not been rectified, the Superintendent may direct the Contractor to do any one or more of the following (including times for commencement and completion):

- (a) remove material from the Site;
- (b) demolish the Work;
- (c) reconstruct, replace or correct the Work; and
- (d) not deliver it to the Site.

If the Contractor fails to comply with such a Direction and that failure has not been made good within 8 days after the Contractor receives written notice from the Superintendent that the Principal intends to have the subject Work rectified by others:

- (i) the Principal may have that Defect so rectified; and
- (ii) the Superintendent must certify the cost incurred as moneys due from the Contractor to the Principal.

29.4 Acceptance of defects

Instead of a Direction under clause 29.3, the Superintendent may direct the Contractor that the Principal elects to accept the Defects, whereupon there will be a deemed Variation.

29.5 Timing

The Superintendent may give a Direction under clause 29.3 or 29.4 at any time before the expiry of the last Defects Liability Period.

30. Examination and testing

30.1 Tests

At any time before the expiry of the last Defects Liability Period, the Superintendent may direct that any WUC be tested. The Contractor must give such assistance and samples and make accessible such parts of WUC as so directed by the Superintendent.

30.2 Covering up

The Superintendent may direct that any part of WUC be not covered up or made inaccessible without the Superintendent's prior written Direction.

30.3 Who conducts

Tests are to be conducted as provided elsewhere in the Contract or by the Superintendent or a person (which may include the Contractor) nominated by the Superintendent.

30.4 Notice

The Superintendent or the Contractor (whichever is to conduct the Test) must give reasonable written notice to the other of the date, time and place of the Test. If the other does not attend, the Test may nevertheless proceed.

30.5 Delay

Without prejudice to any other right, if the Contractor or the Superintendent delays in conducting a Test, the other, after giving reasonable written notice of intention to do so, may conduct the Test.

30.6 Completion and results

On completion of the Tests, the Contractor must make good WUC so that it fully complies with the Contract.

Results of Tests must, as soon as practicable, be made available by each party to the other and to the Superintendent.

30.7 Costs

Costs in connection with Tests conducted in accordance with this clause 30 are to be borne by the Principal except where the Contract otherwise provides or the Test is consequent upon or reveals a failure of the Contractor to comply with the Contract (including this clause 30).

31. Working times

If the working hours and working days on the Site are not stated elsewhere in the Contract, they are those provided by the Contractor to the Superintendent before commencement of Work on Site. They must not be varied without the Superintendent's prior written approval, except when, in the interests of safety of persons or property, the Contractor finds it

necessary to carry out WUC otherwise, whereupon the Contractor must give the Superintendent written notice of those circumstances as soon as practicable.

32. Programming

The Contractor must give the Superintendent reasonable advance notice of when the Contractor needs information, materials, Documents or instructions from the Superintendent or the Principal.

The Principal and the Superintendent are not obliged to give any information, materials, Documents or instructions earlier than ~~the Principal or the Superintendent, as the case may be, should reasonably have anticipated at the Date of~~ expressly stated in the Contract.

The Superintendent may direct in what order and at what time the various stages or portions of WUC must be carried out. If the Contractor can reasonably comply with the Direction, the Contractor must do so. If the Contractor cannot reasonably comply, the Contractor must give the Superintendent written notice of the reasons.

The Superintendent may direct the Contractor to give the Superintendent a Program within the time and in the form directed.

The Contractor must not, without reasonable cause, depart from a Program.

If compliance with any Direction under this clause 32, except one given because of the Contractor's default, causes the Contractor to incur more or less cost than otherwise would have been incurred had the Contractor not been given the Direction, the difference must be assessed by the Superintendent and added to or deducted from the Contract Sum.

33. Suspension

33.1 Superintendent's suspension

The Superintendent may direct the Contractor to suspend the carrying out of the whole or part of WUC for such time as the Superintendent thinks fit if the Superintendent is of the opinion that it is necessary:

- (a) because of an act, default or omission of:
 - (i) the Superintendent, the Principal or its employees, consultants, agents or other contractors (not being employed by the Contractor); or
 - (ii) the Contractor, a subcontractor or either's employees or agents;
- (b) for the protection or safety of any person or property; or
- (c) to comply with a court order.

33.2 Contractor's suspension

If the Contractor wishes to suspend the carrying out of the whole or part of WUC, otherwise than under clause 39.9, the Contractor must obtain the Superintendent's prior written approval. The Superintendent may approve the suspension and may impose conditions of approval.

33.3 Recommencement

As soon as the Superintendent becomes aware that the reason for any suspension no longer exists, the Superintendent must direct the Contractor to recommence suspended WUC as soon as practicable.

The Contractor may recommence WUC suspended under clause 33.2 or 39.9 at any time after reasonable notice to the Superintendent.

33.4 Cost

The Contractor bears the cost of suspension under clauses 33.1(a)(ii) and 33.2. If the Contractor made the protection, safety or court order necessary, the Contractor bears the cost of suspension under clause 33.1(b) or 33.1(c). If the Contractor otherwise incurs more or less cost than otherwise would have been incurred, the difference is to be assessed by the Superintendent and added to or deducted from the Contract Sum.

34. Time and progress

34.1 Progress

The Contractor must ensure that WUC [is progressed with due expedition and without delay and](#) reaches Practical Completion by the Date for Practical Completion.

34.2 Notice of delay

A party becoming aware of anything which will probably cause delay to WUC must, as soon as practicable, give the Superintendent and the other party written notice of that cause and the estimated delay.

34.3 Claim

The Contractor will be entitled to such EOT for carrying out WUC (including reaching Practical Completion) as the Superintendent assesses if:

- (a) the Contractor is or will be delayed in reaching Practical Completion by a Qualifying Cause of Delay; and
- (b) the Contractor gives the Superintendent a written claim for an EOT, which evidences the facts of causation and of the delay to Practical Completion (including extent to the date of the claim), within [2814](#) days of when the Contractor should reasonably have become aware that the Contractor is or will be delayed in reaching Practical Completion by the relevant Qualifying Cause of Delay.

If the Contractor has given the Superintendent a written claim for an EOT in respect of a Qualifying Cause of Delay and further or continuing delay:

- (i) results from that Qualifying Cause of Delay; and
- (ii) occurs after the date on which the EOT claim was given,

the Contractor must claim an EOT for such further or continuing delay by, as soon as practicable, giving the Superintendent a written claim evidencing the facts of that delay.

[A failure by the Contractor to give a written claim in accordance with the notice requirements of this clause 34.3 bars and invalidates any EOT claim made by the Contractor.](#)

34.4 Assessment

When both non-qualifying and Qualifying Causes of Delay overlap, the Superintendent must apportion the resulting delay to WUC according to the respective causes' contributions.

In assessing an EOT, the Superintendent must disregard questions of whether:

- (a) WUC can nevertheless reach Practical Completion before the Date for Practical Completion without an EOT; or
- (b) the Contractor can accelerate,

but must have regard to what prevention and mitigation of the delay has not been effected by the Contractor.

34.5 Extension of time

Within 28 days after receiving the Contractor's claim for an EOT, the Superintendent must give to the Contractor and the Principal a written Direction evidencing the EOT so assessed.

~~If a delay or failure by the Superintendent does not to do so, there is to be a deemed assessment and Direction for an EOT as claimed will not set time at large.~~

Despite that the Contractor is not entitled to or has not claimed an EOT, the Superintendent may (in its absolute discretion) direct an EOT at any time and from time to time before issuing the Final Certificate. The Superintendent is not required to exercise this discretion having regard to, or for the benefit of, the Contractor.

34.6 Practical completion

The Contractor must give the Superintendent at least 14 days written notice of the date upon which the Contractor anticipates that Practical Completion will be reached.

When the Contractor is of the opinion that Practical Completion has been reached, the Contractor must in writing request the Superintendent to issue a Certificate of Practical Completion. Within 14 days after receiving the request, the Superintendent must give the Contractor and the Principal either a Certificate of Practical Completion stating the Date of Practical Completion or written reasons for not doing so. The Certificate of Practical Completion can state a Date of Practical Completion earlier than the date the certificate is given.

If the Superintendent is of the opinion that Practical Completion has been reached, the Superintendent may issue a Certificate of Practical Completion even though no request has been made.

34.7 Liquidated damages

If WUC does not reach Practical Completion by the Date for Practical Completion, the Superintendent must certify any liquidated damages in Item 29 for every day after the Date for Practical Completion as due to the Principal, up to and including the earliest of:

- (a) the Date of Practical Completion;
- (b) termination of the Contract; or
- (c) the Principal taking WUC out of the hands of the Contractor.

The amount payable under this clause 34.7 will be a debt due from the Contractor to the Principal accruing daily.

If an EOT is directed after the Contractor has paid or the Principal has set off liquidated damages, the Superintendent must certify as due from the Principal to the Contractor such of those liquidated damages as represent the days the subject of the EOT.

34.8 Bonus for early practical completion

If the Date of Practical Completion is earlier than the Date for Practical Completion, the Superintendent must certify as due to the Contractor the bonus in Item 30(a) for every day after the Date of Practical Completion to and including the Date for Practical Completion.

The Contractor hereby waives that part of a bonus exceeding the Item 30(b) amount.

34.9 Compensation for delays

The Superintendent must assess and certify, in accordance with clause 41.3, as moneys due from the Principal to the Contractor, compensation calculated in accordance with this clause 34.9 for every day:

- (a) which is the subject of an EOT for a Compensable Cause; and
- (b) for which the Contractor gives the Superintendent a claim for compensation for delays in accordance with clause 41.1.

The compensation referred to in this clause 34.9 is to be calculated as:

- ~~(i) the cost incurred by the Contractor that would not have been incurred but for the days the subject of the relevant EOT; and~~
- ~~(ii) any damages suffered by the Contractor as a consequence of the delays the subject of the relevant EOT but only to the extent the Compensable Cause was a breach of contract by the Principal.~~

35. Defects liability

The Contractor must rectify any Defects at times and in a manner causing as little inconvenience to the occupants or users of the Works as is reasonably possible.

As soon as practicable after the Date of Practical Completion, the Contractor must rectify all Defects existing at the Date of Practical Completion.

During the Defects Liability Period, the Superintendent may give the Contractor a Direction to rectify a Defect which:

- (a) identifies the Defect and the date for completion of its rectification; and
- (b) states a date for commencement of the rectification and whether there will be a separate Defects Liability Period for the rectification (not exceeding that in Item 32, commencing at 4:00 pm on the date the rectification is completed and governed by this clause 35).

If the rectification is not commenced or completed by the stated dates, the Principal may have the rectification carried out by others but without prejudice to any other rights and

remedies the Principal may have. The cost thereby incurred are to be certified by the Superintendent as moneys due to the Principal.

36. Variations

36.1 Directing variations

The Contractor must not vary WUC except as directed by the Superintendent in writing.

The Superintendent may direct a Variation before the Date of Practical Completion, but cannot direct a Variation after the Date of Practical Completion.

If the Contractor considers that a direction constitutes a Variation, it must, as a condition precedent to any entitlement, give the Superintendent notice within 5 Business Days of the direction and in any event before commencing any WUC the subject of the direction.

36.2 Proposed variations

The Superintendent may give the Contractor written notice of a proposed Variation.

The Contractor must as soon as practicable after receiving such notice, notify the Superintendent whether the proposed Variation can be effected. If the proposed Variation can be effected, the Contractor must include in that notice the Contractor's estimate of the:

- (a) effect on the Program (including the Date for Practical Completion); and
- (b) cost (including all time-related costs, if any) of the proposed Variation.

The Superintendent may direct the Contractor to give a detailed quotation for the proposed Variation supported by measurements or other evidence of cost.

~~The Contractor's costs for compliance with each notice and Direction under this clause 36.2 must be certified by the Superintendent as moneys due to the Contractor.~~

36.3 Variations for convenience of the contractor

If the Contractor requests the Superintendent to direct a Variation for the convenience of the Contractor, the Superintendent may do so. If given, the Direction of a Variation:

- (a) must be written; and
- (b) may be conditional.

Unless the Direction of a Variation provides otherwise, the Contractor will be entitled to neither extra time nor extra money.

36.4 Pricing

The Superintendent must price each Variation as soon as practicable using one of the below methods, in order of precedence:

- (a) prior agreement;
- (b) applicable rates or prices in the Contract;
- (c) rates or prices in a priced Bill of Quantities, Schedule of Rates or schedule of prices, to the extent that it is reasonable to use these; and

- (d) reasonable rates or prices, which must include ~~a reasonable~~ amount for profit and overheads calculated using the percentage stated in Item 32A.

Any deductions must include a reasonable amount for profit but no deduction for overheads. The Principal may have WUC which is omitted performed by another contractor or the Principal.

The price of all Variations is to be added to or deducted from the Contract Sum.

37. Payment

37.1 Progress claims

The Contractor may only claim payment progressively in accordance with Item 33 and Annexure Part F.

An early progress claim is to be deemed to have been made on the date for making that claim.

Each progress claim must:

- (a) be given in writing to the Superintendent;
- (b) ~~include details of the value of WUC done~~ be in the form required by the Principal from time to time; and
- (c) ~~include details of other moneys then due to the Contractor under provisions of~~ identify the Contract: number, Project name, claim period and the date of the progress claim;
- (d) itemise all amounts claimed by reference to the relevant Pay Table item number(s) and description(s), and show for each item:
 - (i) amount previously certified;
 - (ii) amount claimed this progress claim; and
 - (iii) amount claimed to date;
- (e) separately identify any amounts claimed for Variations, Provisional Sums and other adjustments, together with supporting particulars and references to the relevant Direction(s) under clause 36 (or other entitlement relied on);
- (f) be accompanied by the records required by the Pay Table for the relevant pay item (and, where the Pay Table is silent, reasonable evidence required by the Superintendent) including such things as: approved timesheets, delivery dockets, test reports, inspection and test plan (ITP) sign-offs, survey records, certificates and acceptance/sign-off documentation (**Supporting Evidence**); and
- (g) be accompanied by a statutory declaration in the form set out in Annexure Part G together with any supporting evidence which may be reasonably required by the Superintendent, duly signed by the Contractor or, where the Contractor is a corporation, by a representative of the Contractor who is in a position to know the facts declared; and

- (h) include any other information reasonably required by the Principal or the Superintendent to enable assessment and certification of the progress claim (including any breakdowns or coding required for the Principal's financial system).

If a progress claim is not submitted in accordance with this clause 37.1, the Superintendent may (acting reasonably) notify the Contractor that the progress claim is non-conforming and, to the extent of the non-conformance, it will be deemed not to have been received for the purposes of clause 37.2 until it is resubmitted in the correct form.

37.2 Issuing of certificates by the superintendent

The Superintendent must, within ~~14 days~~ 10 Business Days after receiving a progress claim, issue to the Principal and the Contractor:

- (a) a Progress Certificate evidencing the Superintendent's opinion of the moneys due from the Principal to the Contractor under provisions of the Contract in respect of the progress claim (including any amounts required to be certified under any provision of the Contract) and reasons for any difference; and
- (b) a certificate evidencing the Superintendent's assessment of retention moneys and moneys due from the Contractor to the Principal under provisions of the Contract (including any amounts required to be certified under any provision of the Contract). This certificate may be separate to, or form part of, a Progress Certificate.

If the Contractor does not make a progress claim in accordance with Item 33, the Superintendent:

- (i) may issue the Progress Certificate with details of the calculations; and
- (ii) must issue the certificate in paragraph (b).

If the Superintendent does not issue the Progress Certificate within 14 days of receiving a progress claim in accordance with this clause 37.2, that progress claim will be deemed to be the relevant Progress Certificate.

37.3 Obligations of the parties

The Contractor must, within 2 Business Days of receiving a Progress Certificate, issue the Superintendent with a tax invoice which must be in the amount of the Progress Certificate.

The Principal must pay to the Contractor the balance of the Progress Certificate after deducting retention moneys and setting off such of the certificate in clause 37.2(b) as the Principal elects to set off. The Principal must make this payment within ~~21 days~~ 15 Business Days after the Superintendent receives the progress claim.

If setting off produces a negative balance, the Contractor must pay that balance to the Principal within 7 days of receiving written notice.

Neither a Progress Certificate nor a payment of moneys is evidence that the subject WUC has been carried out satisfactorily. Payment other than Final Payment is to be payment on account only.

37.4 Unfixed plant and materials

The Principal is not liable to pay for unfixed plant and materials unless they are listed in Item 34 and the Contractor:

- (a) provides the additional Security in Item 15(e); and
- (b) satisfies the Superintendent that the subject plant and materials have been paid for, properly stored and protected, and labelled the property of the Principal.

Upon payment to the Contractor and release of any additional Security in paragraph (a), the subject plant and materials will be the unencumbered property of the Principal.

37.5 Final payment claim and certificate

Within 28 days after the expiry of the last Defects Liability Period, the Contractor must give the Superintendent a written Final Payment Claim endorsed "Final Payment Claim" being a progress claim together with all other claims whatsoever in connection with the subject matter of the Contract.

Within ~~42 days after the expiry of the last Defects Liability Period~~ 10 Business Days after the receipt of a valid Final Payment Claim, the Superintendent must issue to both the Contractor and the Principal, a Final Certificate evidencing the moneys finally due between the Contractor and the Principal on any account whatsoever in connection with the subject matter of the Contract (including any amounts required to be certified under any provision of the Contract).

The Contractor must, within 2 Business Days of receiving a Final Certificate, issue the Superintendent with a tax invoice which must be in the amount of the Final Certificate.

Those moneys certified as due in the Final Certificate must be paid by the Principal or the Contractor, as the case may be, within ~~7 days~~ 15 Business Days after the debtor receives the Final ~~Certificate~~ Payment Claim.

The Final Certificate is conclusive evidence of accord and satisfaction and in discharge of each party's obligations in connection with the subject matter of the Contract except for:

- (a) fraud or dishonesty relating to WUC or any part or to any matter dealt with in the Final Certificate;
- (b) any Defect which was not apparent at the end of the last Defects Liability Period, or which would not have been disclosed upon reasonable inspection at the time of the issue of the Final Certificate;
- (c) any accidental or erroneous inclusion or exclusion of any Work or figures in any computation or an arithmetical error in any computation; and
- (d) unresolved issues the subject of any Notice of Dispute by the Principal, served within 7 days after the issue of the Final Certificate.

37.6 Interest

Interest in Item 35 is due and payable after the date of default in payment.

37.7 Other moneys due

The Principal may ~~elect that moneys due and owing otherwise than in connection with the subject matter of the Contract also be due to the Principal under the provisions of the Contract~~ deduct from moneys otherwise due to the Contractor;

- (a) any debt or other moneys due from the Contractor to the Principal in connection with this Contract; and
- (b) the reasonable value of any good faith claim to money which the Principal has against the Contractor for damages (including liquidated damages), under an indemnity or otherwise relating to the Works or the WUC.

⋮

37.8 Security of Payment Act

- (a) A progress claim submitted to the Principal under clause 37.1 or 37.5 which also purports to be (or is by law) a payment claim under the Security of Payment Act is received by the Superintendent as agent for the Principal.
- (b) Unless notified to the contrary, the Superintendent is authorised to give Progress Certificates and perform all other functions of the Principal under the Security of Payment Act as the agent of the Principal.
- (c) For serving a notice, document or claim under the Security of Payment Act (including progress claims and adjudication applications):
 - (i) the place specified in Item 2 is the Principal's 'ordinary place of business', 'address', 'principal office', 'principal place of business' and 'business address' as the case may be;
 - (ii) personal service on the Principal is only effective by service on the Superintendent;
 - (iii) service by mail is effective only at the Principal's 'ordinary place of business', 'address', 'principal office' or 'principal place of business' as the case may be specified in Item 2;
 - (iv) the Principal specifies the email address stated in Item 35A as the email address that the Contractor may serve a Payment Claim under the Security of Payment Act by email to;
 - (v) there is no email address specified by the Principal for the service of any other document under the Security of Payment Act; and
 - (vi) the Contractor specifies the email address specified in Item 4 as the email address that the Principal may serve a Payment Schedule under the Security of Payment Act by email to.
- (d) Where the Principal has paid the adjudicated amount to the Contractor under an adjudication under the Security of Payment Act, if the adjudicator's determination is quashed, overturned or declared to be void, the adjudicated amount will become a debt due and payable on demand from the Contractor to the Principal.
- (e) If the Principal receives a payment withholding request under section 97B of the Security of Payment Act from a subcontractor, the Principal may withhold the amount in the request from any payment due to the Contractor without any obligation on the Principal to consider whether the notice is valid and whether section 97C of the Security of Payment Act applies.

- (f) The Contractor must, promptly and without delay, give the Principal copies of notices:
- (i) received by the Contractor concerning any potential or actual suspension of work forming part of the WUC; and
 - (ii) between the Contractor and any person (including a subcontractor) under the Security of Payment Act,
- except claims for payment in the ordinary course of business.
- (g) If the Principal becomes aware that a subcontractor may suspend work that is the subject of a subcontract under the Security of Payment Act, the Principal may pay the subcontractor any money that is or may be owing to the subcontractor for that work, and any amount paid by the Principal will be a debt due and payable on demand from the Contractor to the Principal.

37.9 Project Trust Accounts

- (a) This clause 37.9 applies if a project trust account is required for the Contract pursuant to the Security of Payment Act.
- (b) Terms defined by the Security of Payment Act as relevant to the operation of Chapter 2 of the Security of Payment Act and used (without separate definition) in this clause 37.9, have the meaning given to them by the Security of Payment Act.
- (c) The Contractor must open and maintain a project trust account and retention trust account in accordance with the Security of Payment Act.
- (d) If notice is required by the Security of Payment Act to be given to the Principal in respect of or relating to the project trust or retention trust account, the Contractor must give that notice in writing to the Principal's Representative.
- (e) The Contractor must ensure that it does not do anything or fail to do anything that would cause the Principal to be in breach of the Security of Payment Act.
- (f) The additional statements in paragraphs 5 and 6 of the statutory in the form set out in Annexure Part G must be included in the statutory declaration in that form accompanying each progress claim delivered by the Contractor under clause 37.1.

38. Payment of workers and subcontractors

38.1 Workers and subcontractors

To the extent the Contractor is able to do so, it must provide, in respect of a progress claim, Documents which evidence the payment of moneys due and payable to:

- (a) workers of the Contractor and of the subcontractors; and
- (b) subcontractors,

in respect of WUC the subject of that claim.

If the Contractor is unable to provide such Documents, the Contractor must give Documents which evidence the moneys due and payable to workers and subcontractors. The Documents

referred to in this clause 38, except where the Contract otherwise provides, must be to the Superintendent's satisfaction.

38.2 Withholding payment

Subject to the next paragraph, the Principal may withhold moneys certified due in respect of the progress claim until the Contractor complies with clause 38.1.

The Principal must not withhold payment of moneys in excess of those evidenced under clause 38.1 as due and payable to workers and subcontractors.

38.3 Direct payment

Before Final Payment, the Principal, if not aware of a relevant relation-back day (as defined in the *Corporations Act 2001* (Cth)) may pay unpaid moneys the subject of clause 38.1 directly to a worker or a subcontractor where:

- (a) permitted by law;
- (b) given a court order in favour of the worker or subcontractor; or
- (c) requested in writing by the Contractor.

Such payment and a payment made to a worker or subcontractor in compliance with a Legislative Requirement is, to the extent of any such payments, to be deemed to be satisfaction of the Principal's obligation to pay under clauses 2.1, 37.2 and 37.5 as the case may be.

39. Default or insolvency

39.1 Preservation of other rights

If a party breaches or repudiates the Contract, nothing in this clause 39 prejudices the right of the other party to recover damages or exercise any other right or remedy.

39.2 Contractor's default

If the Contractor commits a substantial breach of contract, the Principal may give the Contractor a written notice to show cause.

Substantial breaches include:

- (a) failing to:
 - (i) provide Security;
 - (ii) provide evidence of insurance;
 - (iii) comply with a Direction of the Superintendent under clause 29.3; or
 - (iv) use the materials or standards of Work required by the Contract;
- (b) wrongful suspension of Work;
- (c) substantial departure from a Program without reasonable cause or the Superintendent's approval;
- (d) if there is no Program, failing to proceed with due expedition and without delay; **and**

- (e) in respect of clause 38.1, knowingly provide Documents containing an untrue statement; and

- (f) any other substantial or material breach of the Contract.

39.3 Principal's notice to show cause

A notice under clause 39.2 must state:

- (a) that it is a notice under this clause 39 of these General Conditions of Contract;
- (b) the alleged substantial breach;
- (c) that the Contractor is required to show cause in writing why the Principal should not exercise a right referred to in clause 39.4;
- (d) the date and time by which the Contractor must show cause (which must not be less than 7 days after the notice is received by the Contractor); and
- (e) the place at which cause must be shown.

39.4 Principal's rights

If the Contractor fails to show reasonable cause by the stated date and time, the Principal may by written notice to the Contractor:

- (a) take out of the Contractor's hands the whole or part of the Work remaining to be completed and suspend payment until it becomes due under clause 39.6; or
- (b) terminate the Contract.

39.5 Take out

The Principal must complete Work taken out of the Contractor's hands and may to the extent permitted by law:

- (a) use materials, equipment and other things intended for WUC; and
- (b) without payment of compensation to the Contractor:
 - (i) take possession of, and use such of the Construction Plant and other things on or in the vicinity of the Site as were used by the Contractor; and
 - (ii) contract with such of the Contractor's subcontractors and consultants and any person with any interest in any Construction Plant or other things referred to in this clause 39.5,

as are reasonably required by the Principal to facilitate completion of WUC.

If the Principal takes possession of Construction Plant or other things, the Principal must maintain them and, subject to clause 39.6, on completion of the Work, return them.

The Superintendent must keep records of the cost of completing the Work.

39.6 Adjustment on completion of work taken out

When Work taken out of the Contractor's hands has been completed, the Superintendent must assess the cost thereby incurred and must certify as moneys due the difference between that cost (showing the calculations of that cost) and the amount which would

otherwise have been paid to the Contractor if the Work had been completed by the Contractor.

If the Contractor is indebted to the Principal, the Principal may retain Construction Plant or other things taken under clause 39.5 until the debt is satisfied. If, after reasonable notice the Contractor fails to pay the debt, the Principal may sell the Construction Plant or other things and apply the proceeds to the satisfaction of the debt and the costs of sale. Any excess must be paid to the Contractor.

39.7 Principal's default

If the Principal commits a substantial breach of contract, the Contractor may give the Principal a written notice to show cause.

Substantial breaches include:

- (a) failing to:
 - (i) provide Security;
 - (ii) produce evidence of insurance;
 - (iii) rectify inadequate Contractor's ~~possession of~~[access to](#) the Site if that failure continues for longer than the time stated in Item 36; or
 - (iv) make a payment due and payable under any provision of the Contract; and
- (b) the Superintendent not giving a Certificate of Practical Completion or written reasons for not doing so as required by clause 34.6.

39.8 Contractor's notice to show cause

A notice given under clause 39.7 must state:

- (a) that it is a notice under this clause 39 of these General Conditions of Contract;
- (b) the alleged substantial breach;
- (c) that the Principal is required to show cause in writing why the Contractor should not exercise a right referred to in clause 39.9;
- (d) the date and time by which the Principal must show cause (which must not be less than 7 days after the notice is received by the Principal); and
- (e) the place at which cause must be shown.

39.9 Contractor's rights

If the Principal fails to show reasonable cause by the stated date and time, the Contractor may, by written notice to the Principal, suspend the whole or any part of WUC.

The Contractor must remove the suspension if the Principal remedies the breach.

The Contractor may, by written notice to the Principal, terminate the Contract if within 28 days of the date of suspension under this clause 39.9 the Principal fails:

- (a) to remedy the breach; or

- (b) to make arrangements to the reasonable satisfaction of the Contractor if the breach is not capable of remedy.

Damages suffered by the Contractor by reason of the suspension are to be assessed by the Superintendent, who must certify them as moneys due to the Contractor.

39.10 Termination

If the Contract is terminated under clause 39.4(b) or 39.9, the parties' remedies, rights and liabilities will be the same as they would have been under the law governing the Contract had the defaulting party repudiated the Contract and the other party elected to treat the Contract as at an end and recover damages.

39.11 Insolvency

If:

- (a) a party informs the other (or creditors generally) in writing that the party is insolvent or is financially unable to proceed with the Contract;
- (b) execution is levied against a party by a creditor;
- (c) a party is an individual person or a partnership including an individual person, and if that person:
 - (i) commits an act of bankruptcy;
 - (ii) has a bankruptcy notice or creditors petition issued against it or presents a debtor's petition, or a trustee in bankruptcy is otherwise appointed to any of the person's property;
 - (iii) becomes bankrupt; or
 - (iv) enters into, attempts to enter into, or convenes a meeting for the purpose of entering into, an arrangement, assignment or composition with the party's creditors under Part IV or Part X of the *Bankruptcy Act 1966* (Cth) or any other provision under any law to which the person is subject, including the law governing the Contract; or
- (d) a party is a corporation and if in relation to that party:
 - (i) notice is given of a meeting of creditors with a view to the corporation entering a deed of company arrangement;
 - (ii) it is in liquidation, in provisional liquidation, under administration or wound up;
 - (iii) it enters a deed of company arrangement with creditors;
 - (iv) a liquidator, provisional liquidator, controller, administrator receiver, receiver and manager or other insolvency official is appointed to it or in relation to the whole or a substantial part of its assets;
 - (v) an application is made to a court for its winding up and not stayed within 14 days;

- (vi) a court order is made in respect of it for its winding up or dissolution (other than for a member's voluntary winding up);
- (vii) it resolves that it be wound up (other than for a member's voluntary winding up);
- (viii) a mortgagee of any of its property takes possession of that property; or
- (ix) it enters into, attempts to enter into, or convenes a meeting for the purpose of entering into any arrangement, assignment, moratorium, reorganisation or composition involving one or more of its creditors,

then, subject to any applicable statutory stay on the exercise of rights, where the other party is:

- (A) the Principal, the Principal may, without giving a notice to show cause, exercise the right under clause 39.4(a); or
- (B) the Contractor, the Contractor may, without giving a notice to show cause, exercise the right under clause 39.9.

The rights and remedies given by this clause 39.11 are additional to any other rights and remedies. They may be exercised despite that there has been no breach of contract.

40. Termination by frustration

If the Contract is frustrated:

- (a) the Superintendent must issue a Progress Certificate for WUC carried out to the date of frustration, evidencing the amount which would have been payable had the Contract not been frustrated and had the Contractor been entitled to and made a progress claim on the date of frustration;
- (b) the Principal must pay the Contractor:
 - (i) the amount due to the Contractor evidenced by all unpaid certificates;
 - (ii) the cost of materials and equipment reasonably ordered by the Contractor for WUC and which the Contractor is liable to accept, but only if they will become the Principal's property upon payment; and
 - (iii) the costs reasonably incurred:
 - (A) removing Temporary Works and Construction Plant;
 - (B) returning to their place of engagement the Contractor, subcontractors and their respective employees engaged in WUC at the date of frustration; and
 - (C) by the Contractor in expectation of completing WUC and not included in any other payment; and
- (c) each party must, as soon as practicable, release and return all Security provided by the other.

40A Termination for convenience

40A.1 Right of the Principal

- (a) The Principal may ~~at any time~~, in its absolute discretion and without cause, terminate the Contract by providing 30 days' notice to the Contractor.
- (b) The Principal may either itself or engage another contractor to perform all or any part of the WUC after the Contract is terminated.

40A.2 Remedies

If the Contract is terminated under clause 40A.1 the Principal must pay the Contractor:

- (a) all amounts due and payable to the Contractor for the WUC at the date of termination;
- (b) the cost of materials properly ordered for the Works for which the Contractor has paid, or is legally bound to pay, except:
 - (i) the Contractor must deliver or arrange for delivery of the materials as directed by the Principal; and
 - (ii) title to those materials will vest in the Principal when payment is made by the Principal under this clause 40A.2 ; and
- (c) the reasonable termination costs payable to suppliers of Constructional Plant except where:
 - (i) the Contractor cannot use the Constructional Plant on other works; and
 - (ii) the agreements between the Contractor and those suppliers are not assigned to the Principal.

40B Consequences of termination

If the Principal terminates the Contract, it may require the Contractor to:

- (a) novate or assign to the Principal or its nominee using documents provided by the Principal and without payment any agreement or the benefit of any agreement for the supply of materials or goods or services for the execution of any of the Works; and
- (b) deliver all documentation necessary to enable the Principal to perform the Contractor's obligations under this Contract.

41. Notification of claims

41.1 Communication of claims

The Prescribed Notice is a written notice of the general basis and quantum of the claim.

As soon as practicable ~~after a party~~the Contractor becomes aware of any claim in connection with the subject matter of the Contract, ~~that party~~it must give to the ~~other party~~Principal and to the Superintendent the Prescribed Notice or a Notice of Dispute under clause 42.1.

This clause 41.1 and clause 41.3 do not apply to any claim, including a claim for payment (except for claims which would, other than for this clause, have been included in the Final Payment Claim), the communication of which is required by another provision of the Contract.

41.2 Liability for failure to communicate

The failure of ~~a party~~ the Contractor to comply with clause 41.1 or to communicate a claim in accordance with the relevant provision of the Contract will, ~~among other things, entitle the other party to damages for breach of contract but will neither bar nor~~ bar and invalidate the claim.

41.3 Superintendent's decision

If within 28 days of giving the Prescribed Notice, the party giving it does not notify the other party and the Superintendent of particulars of the claim, the Prescribed Notice will be deemed to be the claim.

Within 56 days of receipt of the Prescribed Notice, the Superintendent must assess the claim and notify the parties in writing of the decision. Unless a party within a further 28 days of such notification gives a Notice of Dispute under clause 42.1 which includes such decision, the Superintendent must certify the amount of that assessment to be moneys then due.

42. Dispute resolution

42.1 Notice of dispute

Each Dispute between the parties must be dealt with in accordance with this clause 42. If any such Dispute arises, then either party may give the other and the Superintendent a written Notice of Dispute adequately identifying and providing details of the Dispute.

Despite the existence of a Dispute, the parties must, subject to clauses 39, 40 and 42.13, continue to perform the Contract.

42.2 Method of dispute resolution — Default procedure

If the parties have not selected any method of additional dispute resolution in Item 37, or the Contract provides that this clause applies:

- (a) negotiation in accordance with clause 42.3 will apply in respect of each Dispute; and
- (b) if the Dispute has not been resolved within 28 days after the Notice of Dispute is received, then clause 42.4 applies.

42.3 Negotiation

If this clause applies in respect of a Dispute, then ~~the parties must,:~~

- (a) within 14 days after receiving a Notice of Dispute, the representatives set out in Item 37A; and
- (b) if the Dispute remains unresolved following that meeting, within 14 days of that meeting, the senior representatives set out Item 37B,

must negotiate ~~in good faith~~ at least once to attempt to resolve the Dispute or to agree on a dispute resolution process.

At every such negotiation, each party must be represented by a person having authority to agree to such resolution or process.

All aspects of every such negotiation except the fact of occurrence are privileged.

42.4 Final dispute resolution

Where this clause 42 provides that this clause applies, if the parties:

- (a) have only selected arbitration in Item 38, then clause 42.12 ~~shall~~will apply;
- (b) have only selected litigation in Item 38, then clause 42.12 ~~shall~~will not apply and either party may commence litigation in respect of the Dispute; or
- (c) have selected neither or both in Item 38, clause 42.12 ~~shall~~will not apply and either party may commence litigation in respect of the Dispute.

42.5 Additional dispute resolution — Mediation

If the parties have selected mediation (without expert determination) in Item 37 as the additional form of dispute resolution:

- (a) negotiation in accordance with clause 42.3 will apply in respect of each Dispute;
- (b) if the Dispute has not been resolved under clause 42.3 within 28 days after the Notice of Dispute is received, then mediation in accordance with clause 42.9 will apply in respect of the Dispute; and
- (c) if the Dispute has not been resolved under clause 42.9 within 63 days after the Notice of Dispute is received, then clause 42.4 applies.

42.6 Additional dispute resolution — Expert determination

If the parties have selected expert determination (without mediation) in Item 37 as the additional form of dispute resolution:

- (a) negotiation in accordance with clause 42.3 will apply in respect of each Dispute;
- (b) if the Dispute has not been resolved under clause 42.3 within 28 days after the Notice of Dispute is received, then expert determination in accordance with clause 42.10 will apply in respect of the Dispute; and
- (c) if the Dispute has not been resolved under clause 42.10 within 138 days after the Notice of Dispute is received or, if the Dispute is deemed under clause 42.10 not to have been resolved, then clause 42.4 applies.

42.7 Additional dispute resolution — Mediation and expert determination

If the parties have selected mediation and expert determination in Item 37 as the additional form of dispute resolution:

- (a) negotiation in accordance with clause 42.3 will apply in respect of each Dispute;
- (b) if the Dispute has not been resolved under clause 42.3 within 28 days after the Notice of Dispute is received, then mediation in accordance with clause 42.9 will apply in respect of the Dispute;
- (c) if the Dispute has not been resolved under clause 42.9 within 63 days after the Notice of Dispute is received, then expert determination in accordance with clause 42.10 will apply in respect of the Dispute; and

- (d) if the Dispute has not been resolved under clause 42.10 within 173 days after the Notice of Dispute is received or, if the Dispute is deemed under clause 42.10 not to have been resolved, then clause 42.4 applies.

42.8 Additional dispute resolution — Dispute avoidance board

If the parties have selected Dispute Avoidance Board in Item 37 as the additional form of dispute resolution, then clause 42.11 will apply in respect of each Dispute.

42.9 Mediation

If this clause applies in respect of a Dispute, then the Dispute must be and is hereby referred to mediation in accordance with the mediation rules stated in Item 39.

The mediator cannot act in any subsequent proceedings concerning the Dispute, unless the parties otherwise agree.

42.10 Expert determination

If this clause applies in respect of a Dispute, then the Dispute must be and is hereby referred to expert determination.

The expert determination will be conducted in accordance with the expert determination rules stated in Item 40.

If the parties have stated in Item 41 that the expert's determination is interim binding:

- (a) either party may give notice to the other within 14 days after receipt by the parties of the expert's determination stating that it is dissatisfied with the determination; and
- (b) if such a notice is given in accordance with paragraph (a), the Dispute that is the subject of the determination is deemed not to have been resolved.

42.11 Dispute avoidance board

If this clause 42.11 applies, the parties must:

- (a) execute a Dispute Avoidance Board Agreement which appoints the number of Dispute Avoidance Board Members stated in Item 42 and is in the form then published by the Dispute Resolution Board Foundation Region 3 (available on its webpage) as soon as practicable after the Date of Contract;
- (b) use all reasonable endeavours to procure that the Dispute Avoidance Board Member(s) stated in Item 43 (or such alternative Dispute Avoidance Board Member(s) as the parties may agree) execute the Dispute Avoidance Board Agreement as soon as practicable after the Date of Contract; and
- (c) thereafter comply with their obligations under the Dispute Avoidance Board Agreement.

If the Dispute Avoidance Board Agreement has not been fully executed on the date a Notice of Dispute is received, then clause 42.2 will apply in respect of the Dispute.

If the parties have stated in Item 44 that any DAB Decision is interim binding:

- (i) either party may give notice to the other within 14 days after receipt by the parties of the DAB Decision stating that it is dissatisfied with the DAB Decision; and

- (ii) if such a notice is given in accordance with paragraph (i), clause 42.4 applies in respect of the Dispute.

42.12 Arbitration

If this clause 42.12 applies in respect of a Dispute, then the Dispute must be and is hereby referred to arbitration.

Arbitration must be conducted in accordance with the arbitration rules in Item 45.

42.13 Interim relief

Nothing herein prejudices the right of a party to institute proceedings to seek interim relief from any court or tribunal, including to enforce payment due under the Contract or to seek injunctive or urgent declaratory relief.

43. Waiver of conditions

Except as provided at law or in equity or elsewhere in the Contract, none of the provisions of the Contract will be varied, waived, discharged or released, except with the prior written consent of the parties.

44. PPSA requirements

44.1 General

Except where the context otherwise requires, terms used in this clause 44 that are defined in the *Personal Property Securities Act 2009* (Cth) have the meaning given to them in the *Personal Property Securities Act 2009* (Cth).

44.2 Further assurances

Each party agrees to do all things (such as obtaining consent, signing and producing Documents, getting Documents completed and signed) and provide all information reasonably required by the other party to:

- (a) ensure that each PPSI created under the Contract is enforceable, perfected and otherwise effective;
- (b) enable the other party to register any PPSI arising in its favour on the PPS Register, with the highest-ranking priority possible, including where applicable, as a PMSI and to maintain that registration; and
- (c) enable the other party to exercise rights in connection with any PPSI arising in its favour.

44.3 PPSIs

The parties acknowledge and agree that:

~~(a) one or more PPSIs arise under the Contract over the Security described in Item 16 in favour of the Contractor;~~

(a) ~~(b)~~ one or more PPSIs arise under the Contract over the Security described in Item 15, the unfixed plant and materials for which a payment claim may be made under

clause 37.4 and the rights granted to the Principal under clause 39.5, in each case in favour of the Principal;

- (b) ~~(e)~~ each PPSI described in this clause 44.3 is registrable on the PPS Register; and
- (c) ~~(d)~~ this Contract constitutes a security agreement for the purpose of the PPSA.

44.4 Waiver of right to receive notices

Each party waives its rights to receive notice of a verification statement under the PPSA.

44.5 PPSA confidentiality

The parties agree that neither party will disclose to an Interested Person or any other person, any information of the kind described in section 275(1) of the PPSA.

Each party agrees not to exercise its rights to make any request of a Secured Party under section 275 of the PPSA and will not authorise the disclosure of any information of the kind described in section 275(1) of the PPSA.

44.6 Security interest continues despite dealing

If, in breach of this Contract, a party disposes of or otherwise deals with (or attempts to dispose of or deal with) any property that is subject to a PPSI in favour of a Secured Party arising under this Contract, the parties acknowledge that, despite the disposal or dealing:

- (a) the Secured Party has not authorised the disposal or agreed that the dealing would extinguish the Secured Party's PPSI; and
- (b) the Secured Party's PPSI continues in that property, including any proceeds arising from that disposal or dealing.

45. Anti-Corruption

45.1 Receipt of benefits

A director, employee or agent of the Contractor must not:

- (a) give or receive any commission, fee, rebate, gift or entertainment of significant value from; or
- (b) enter into any business agreement with,
any director, employee or agent of the Principal other than as a representative of the Principal or in the ordinary and proper course of business between any of those parties.

45.2 Compliance with Anti-Corruption requirements

- (a) In this clause, **Anti-Corruption Laws** means any Legislative Requirement which prohibits the offering of any gift, payment or other benefit to any person or any officer, employee, agent or adviser of such person or has as its objective the prevention of corruption, and is applicable in the jurisdiction in which the **Principal** or the **Contractor** are registered or conduct business or in which the WUC are to be performed.
- (b) The Contractor must:

- (i) when performing its obligations under the Contract, comply with all applicable Anti-Corruption Laws; and
- (ii) ensure its subcontracts include obligations on the relevant subcontractors that are equivalent to the obligations in clause 45.2(b)(i).

45.3 Conflict of interest

- (a) The Contractor represents that at the Date of Contract no conflict of interest exists or is likely to arise in the performance of the Contractor's obligations under the Contract, including that there is no relationship between it and the Principal, between any of the Contractor's directors or employees and the Principal or between the Contractor and a director or employee of the Principal that gives rise to an actual or potential conflict of interest.
- (b) The Contractor **must immediately notify the** Principal upon becoming aware of any actual or potential conflict of interest. The Contractor must take reasonable steps to eliminate or overcome the conflict of interest without in any way adversely affecting its continued performance of its obligations under the Contract.

46. Anti-Slavery

- (a) In this clause, **Anti-Slavery Laws** means any Legislative Requirements which has as its objective the prohibition of exploitation of workers, human trafficking, slavery, slavery-like behaviour, servitude, forced labour, child labour, debt bondage or deceptive recruiting for labour or services (or similar types of conduct) and is applicable or otherwise in force in the jurisdiction in which the Principal or the Contractor are registered or conduct business or in which activities relevant to the WUC are to be performed;
- (b) The Contractor warrants that the Contractor must, when performing its obligations under the Contract:
 - (i) comply with all applicable Anti-Slavery Laws;
 - (ii) comply with the Principal's Policies relating to anti-slavery (or the Contractor's own procedures, provided these are consistent with the Principal's Policies); and
 - (iii) do all things required or necessary to mitigate or reduce modern slavery risks in its operations and supply chains and stay in compliance with all applicable Anti-Slavery Laws.
- (c) The Contractor must:
 - (i) establish and maintain policies and procedures to ensure that the Contractor and the Contractor's personnel comply with the obligations in this clause 46; and
 - (ii) provide all reasonable assistance including the provision of information and access to documents and the Contractor's personnel as the Principal may require from time to time to enable the Principal to comply with its obligations under the *Modern Slavery Act 2018* (Cth) and all other equivalent laws applicable to the Principal and to investigate any actual,

alleged or reasonably suspected breaches by the Contractor or the Contractor's personnel of any Anti-Slavery Laws.

- (d) The Contractor must ensure its subcontracts include obligations on the relevant subcontractors that are equivalent to the obligations in clause 46(b) and 46(c).
- (e) The Contractor must immediately notify and provide full particulars to the Principal upon becoming aware:
 - (i) of a possible, potential, suspected or actual breach of any Anti-Slavery Laws, or any conduct which may give rise to a breach of clause 46(b) by either the Contractor or the Contractor's personnel; or
 - (ii) that it or any of the Contractor's personnel have been found guilty by a court of, or have admitted guilt or accepted liability in relation to, a contravention of any Anti-Slavery Laws.
- (f) If the Contractor gives a notice under clause 46(e), or the Principal otherwise becomes aware or has a reasonable suspicion of any breach of clause 46 or any conduct which may give risk to a breach of any of those provisions (**Anti-slavery breach**), the Principal may request the Contractor to:
 - (i) prepare, document and implement a corrective action plan to address the Anti-slavery breach or to mitigate the risk, damage or potential damage arising from the Anti-slavery breach, which must be consistent with the Contractor's Human Rights Risk Management Plan; and
 - (ii) confirm to the Principal in writing that such measures have been implemented.

47. Trade and Economic Sanctions

- (a) In this clause 47:
 - (i) **Sanction** means any specially designated nationals or blocked persons lists and or any replacements lists that relate to the enforcement of economic and trade sanctions which are maintained, amended and imposed by the United Nations, the European Union, His Majesty's Treasury in the United Kingdom, the United States Department of Treasury's Office of Foreign Assets Control, the Commonwealth of Australia, Switzerland, South Africa, Canada or any replacement or other regulatory body enforcing economic and trade sanctions legislation in such countries or by any state, supranational or international government organisation.
 - (ii) **Sanctioned Person** means any person, being an individual, corporation, company, association, government or other entity who:
 - (A) is the subject or target of a Sanction or in respect of which a Sanction has been imposed or targeted; or

- (B) is owned, operated or controlled by any person who is the subject or target of a Sanction or in respect of which a Sanction has been imposed or is targeted.
- (b) As at the Date of Contract, the Contractor warrants that to the best of its knowledge, information or belief neither it, nor any of the Contractor's personnel or related bodies corporate (as defined in the *Corporations Act 2001* (Cth)) (including the employees, agents and contractors of such related bodies corporate) (together with the Contractor, the **Contractor's Group**) is a Sanctioned Person.
- (c) From the Date of Contract, the Contractor must:
 - (i) comply with any Sanction and ensure that the Contractor and entities of the Contractor's Group are not and do not become a Sanctioned Person;
 - (ii) immediately notify the Principal upon becoming aware that it or any member of the Contractor's Group, has become or is reasonably likely to become a Sanctioned Person or violated any Sanction; and
 - (iii) provide all information that the Principal reasonably requires from time to time in order for the Principal to:
 - (A) determine whether any member of the Contractor's Group has become or is reasonably likely to become a Sanctioned Person; and
 - (B) comply with laws applying in the jurisdictions in which the WUC is performed, the parties are located or in any other country.

48. The Building and Construction Code of Practice

- (a) The Contractor warrants that at the time of entering into this Contract, neither it, nor any of its related entities, are subject to a sanction in connection with the Building and Construction Code of Practice (the **Code**, available at <https://www.oir.qld.gov.au/industrial-relations/building-and-construction-code-practice-2000>) that would preclude it from tendering for work to which the Code applies.
- (b) To the extent it applies to the Contract, the Contractor must:
 - (i) comply with, and meet any obligations imposed by, the Code;
 - (ii) maintain adequate records of compliance with the Code by it, its subcontractors and related entities, and provide access to these records and any other information and documents reasonably required by the Principal as is necessary to monitor and investigate compliance with the Code; and
 - (iii) notify the Principal as soon as reasonably practicable where a change in the Contract or the WUC proposed would (or would be likely to) affect compliance with the Code.

49. Queensland Government Procurement Policies

49.1 General

- (a) In this clause 49:
- (i) **Procurement Assurance Model** is referred to in Part 3 of the Queensland Procurement Policy and includes any additional requirements relating to the Procurement Assurance Model as published from time to time;
 - (ii) **Queensland Charter for Local Content** means the document of that name issued by the Queensland Government. The current document is available at:
https://www.statedevelopment.qld.gov.au/_data/assets/pdf_file/0014/33260/queensland-charter-for-local-content.pdf;
 - (iii) **Queensland Government Procurement Assurance Portal** means the portal maintained by Queensland Government Procurement and available at: <https://qgpassuranceportal.hpw.qld.gov.au/>, and any replacement portal;
 - (iv) **Queensland Procurement Policy** means the Queensland Government policy titled "Queensland Procurement Policy 2026". The current document is available at:
https://www.forgov.qld.gov.au/_data/assets/pdf_file/0030/643197/qld-gov-procurement-policy-2026-accessible.pdf;
 - (v) **Queensland Procurement Solution** means the procurement platform referred to in the Queensland Procurement Policy, and any replacement procurement platform; and
 - (vi) **Queensland Government Supplier Code of Conduct** means the Queensland Government policy titled "Queensland Government Supplier Code of Conduct 2026". The current document is available at:
https://www.forgov.qld.gov.au/_data/assets/pdf_file/0028/641719/supplier-code-of-conduct-2026.pdf.
- (b) The Contractor must, in carrying out the WUC, comply with (and must ensure its subcontractors comply with):
- (i) to the extent required under clause 49.2, the principles of the Queensland Procurement Policy;
 - (ii) to the extent it applies and in accordance with clause 49.3, the Queensland Charter for Local Content;
 - (iii) the Queensland Government Supplier Code of Conduct; and
 - (iv) the Procurement Assurance Model.
- (c) The Contractor must notify the Principal, in writing, within 10 Business Days if:
- (i) the Contractor ceases to be compliant with any requirement under clause 49.1(b); or

- (ii) the Contractor or any subcontractor is suspended on the Queensland Government Procurement Assurance Portal.
- (d) Any failure by the Contractor to comply with the Queensland Government Supplier Code of Conduct in breach of clause 49.1(b)(iii) constitutes a substantial breach of this Contract.

49.2 Queensland Procurement Policy

- (a) The Contractor acknowledges that the Principal, as a government owned corporation, is required to comply with certain parts of the Queensland Procurement Policy.
- (b) In order to support the Principal in complying with the Queensland Procurement Policy, and the Queensland Government in achieving its policy objectives, the Contractor must:
 - (i) seek to:
 - (A) achieve 'value for money' (as defined in the Queensland Procurement Policy) in its subcontracting activities; and
 - (B) support 'purposeful public procurement' (as defined in the Queensland Procurement Policy) outcomes as advised by the Principal from time to time';
 - (ii) behave ethically, and embed integrity, probity and accountability, when performing the WUC and generally in its business;
 - (iii) for any procurement of Subcontractors where the Subcontract is estimated to be valued above \$500,000 (incl GST):
 - (A) provide the Principal with a 'significant procurement plan' which meets the requirements of the Queensland Procurement Policy; and
 - (B) include conditions in the subcontract requiring ongoing compliance with the quality assurance requirements of the Contract, as applicable to the scope of the subcontract;
 - (iv) if requested by the Principal, provide the Principal with information to enable the Principal to publish subcontracting opportunities on the Queensland Procurement Solution and Queensland Government's QTenders website; and
 - (v) comply with any other reasonable directions of the Principal in relation to the Queensland Procurement Policy.

49.3 Queensland Charter for Local Content

If the WUC is subject to the Queensland Charter for Local Content (QCLC), then:

- (a) the Contractor will comply with the principles of the QCLC;
- (b) the Contractor must:

- (i) if requested by the Principal, within 28 days of the Date of Contract, prepare and submit a Queensland Charter for Local Content – Statement of Intent (Tenderer) (available from <https://www.statedevelopment.qld.gov.au/industry/industry-support/qld-charter-for-local-content>), indicating how the principles of the QCLC will be addressed; and
 - (ii) comply with any statement of intent applicable to the Contract;
- (c) prior to the Practical Completion, the Contractor must complete and submit a Queensland Charter for Local Content – Project Outcome Report (available from <https://www.statedevelopment.qld.gov.au/industry/industry-support/qld-charter-for-local-content>) to the Principal; and
- (d) at any other time determined by the Principal, the Contractor must provide to the Principal details of the value and source of the WUC.

50. Change in Queensland Government policies

If either party becomes aware of an amendment to or replacement of any of the Queensland Government policies referred to in clauses 48 and 49 or the application of any new Queensland Government policy to the Principal after the Date of Contract (**Policy Change**) that has or may have a material impact on the WUC, then that party must notify the other party of the Policy Change. The Principal will, in its absolute discretion, either:

- (a) confirm that there is no change to the obligations of the Contractor under the Contract in respect of the Policy Change; or
- (b) direct the Contractor to comply with the amended, replaced or new Queensland Government policy as a Variation under clause 36.

51. Information sharing and compliance

- (a) In this clause 51, **Government Department or Instrumentality** means the Department of Housing and Public Works, QGP Compliance Branch, Queensland Government Procurement Committee and any governmental regulator, including Workplace Health and Safety Queensland, the Queensland Building and Construction Commission, the Building Construction Compliance Branch, the Fair Work Commission, and the Australian Taxation Office and any entity which replaces these entities from time to time.
- (b) The Contractor agrees to provide all information and reports reasonably requested by the Principal or any Government Department or Instrumentality relating to compliance by the Contractor or any of its subcontractors with the policies referred to in clauses 48 and 49.
- (c) Without limiting the Principal's rights under the Contract, the Principal may:
 - (i) obtain information about the Contractor and its subcontractors that may be held by any Government Department or Instrumentality which is relevant to determine whether the Contractor and its subcontractors comply with the policies referred to in clauses 48 and 49;

- (ii) disclose information about the Contractor and its subcontractors to a Government Department or Instrumentality for the purpose of obtaining information about the Contractor in accordance with this clause 51; and
- (iii) collect and use information about the Contractor and its subcontractors, including information held by any Government Department or Instrumentality, for the purposes of monitoring compliance with the policies referred to in clauses 48 and 49.
- (d) The Contractor acknowledges that if the Contractor fails to comply with the Queensland Government policies referred to in clause 49, the Principal may refer matters of non-compliance to the relevant Government Department or Instrumentality who may publish information about any suspensions, sanctions or other consequences and conditions imposed on the Contractor.

~~(b)~~

Annexure Part A — Contract details

This annexure should be completed (to the extent possible) and issued as part of the tender documents. Prior to the formation of the Contract and subject to any amendments to be incorporated into the Contract, this annexure is to be attached to these General Conditions of Contract and read as part of the Contract.

Item		
1	Principal (clause 1.1)	<u>As set out in the Formal Instrument of Agreement,</u> Click or tap here to enter text ABN Click or tap here to enter text If nothing is stated, the person identified in the Formal Instrument of Agreement, or otherwise in the Contract, as the Principal.
2	Principal's address	Postal address: Click or tap here to enter text <u>Level 2, 180 Ann Street Brisbane, Queensland 4000</u> Email address: Click or tap here to enter text <u>general.counsel@stanwell.com</u>
3	Contractor (clause 1.1)	<u>As set out in the Formal Instrument of Agreement,</u> Click or tap here to enter text ABN Click or tap here to enter text If nothing is stated, the person identified in the Formal Instrument of Agreement, or otherwise in the Contract, as the Contractor.
4	Contractor's address	Postal address: Click or tap here to enter text Email address: Click or tap here to enter text
5	Relevant Supply (clause 1.1) <u>Not used</u>	Click or tap here to enter text If nothing stated, none to apply.
	Guidance note to Item 5	If applicable, specify the part of the Work for which RCTIs apply.
6	Superintendent (clause 1.1)	Click or tap here to enter text ABN Click or tap here to enter text
7	Superintendent's address	Click or tap here to enter text

Item		
8	(a) Date for Practical Completion (clause 1.1)	Click or tap to enter a date
	OR	
	(b) Period of time for Practical Completion (clause 1.1)	Click or tap here to enter text Unless otherwise stated, commencing on the Date of Contract.
	Guidance note to Item 8	If applicable, delete and instead complete equivalent Item in the Separable Portions section of the Annexure Part A.
9	Governing law (clause 1.2(l))	Queensland, Australia Click or tap here to enter text If nothing stated, that of the jurisdiction where the Site is located.
10	Other requirements for Practical Completion (clause 1.1 "Practical Completion")	Click or tap here to enter text Provision of subcontractor warranties in accordance with clause 9.6 If nothing stated, none to apply.
	Guidance note to Item 10	If applicable, delete and instead complete equivalent Item in the Separable Portions section of the Annexure Part A.
11	(a) Currency (clause 1.2(k))	AUD Click or tap here to enter text If nothing stated, that of the jurisdiction where the Site is located.
	(b) Place for payments (clause 1.2(k))	Click or tap here to enter text If nothing stated, the Principal's address. Principal's address
	(c) Place of business of bank (clause 1.1 "Security" (d))	Click or tap here to enter text If nothing stated, the place nearest to where the Site is located.
12	Bill of Quantities (clause 2.2)	
	(a) Alternative applying (clause 2.2)	Choose an Alternative 2 If neither selected, Alternative 1 applies.
	(b) If Alternative 2 applies, is the Bill of Quantities to be priced? (clause 2.2)	Choose an Alternative If neither selected, the No Bill of Quantities will is not to be priced-

Item		
	(c) Lodgement time (clause 2.3(b))	<u>N/A – clause 2.3 does not apply to the Contract</u> Click or tap here to enter text If nothing stated, 28 days after Date of Contract.
13	Quantities in Schedule of Rates, limits of accuracy (clause 2.5(b))	Upper limit Click or tap here to enter text Lower limit Click or tap here to enter text <u>N/A – clause 2.5 does not apply to the Contract</u>
14	Provisional Sum, percentage for profit and attendance (clause 3)	Click or tap here to enter text%
15	Contractor's Security	
	(a) Form (clause 5)	<u>2 unconditional bank guarantees, each for 2.5% of the Contract Sum</u> Click or tap here to enter text If nothing stated, as determined by the Contractor.
	(b) Amount or maximum percentage of Contract Sum (clause 5)	Click or tap here to enter text If nothing stated, 5% of Contract Sum.
	(c) If retention moneys, percentage of each Progress Certificate (clauses 5 and 37.2)	<u>N/A</u> Click or tap here to enter text If nothing stated, 10%, until the limit in Item 15(b).
	(d) Time for provision (except for retention moneys) (clause 5)	Click or tap here to enter text If nothing stated, within 28 days after Date of Contract. <u>N/A</u>
	(e) Additional Security for unfixed plant and materials (clauses 5.4 and 37.4)	\$ Click or tap here to enter text If nothing stated, Nil.
	(f) Contractor's Security upon Certificate of Practical Completion is reduced by (clause 5.4)	Click or tap here to enter text <u>50%</u> of amount held. If nothing stated, 50% of amount held.
	Guidance note for Item 15	If applicable, delete and instead complete equivalent Item in the Separable Portions section of the Annexure Part A.
16	Principal's Security <u>Not used</u>	

Item			
	(a) Form (clause 5)	Click or tap here to enter text	
	(b) Amount or maximum percentage of Contract Sum (clause 5)	Click or tap here to enter text If nothing stated, Nil.	
	(c) Time for provision (clause 5)	Click or tap here to enter text If nothing stated, within 28 days after Date of Contract.	
	(d) Principal's Security upon Certificate of Practical Completion is reduced by (clause 5.4)	Click or tap here to enter text % of amount held. If nothing stated, 50% of amount held.	
	Guidance note for Item 16	If applicable, delete and instead complete equivalent Item in the Separable Portions section of the Annexure Part A.	
17	Principal-supplied Documents (clause 8.2)	#	Document name
		1	All documents contained in the folder titled 'Design Folder' made available by the Principal to the Contractor on [insert date] at the following link: [insert link]. Click or tap here to enter text
			No. of copies
			Click here to enter 1 digital copy
		2	Click or tap here to enter text
		3	Click or tap here to enter text
		4	Click or tap here to enter text
		5	Click or tap here to enter text
		6	Click or tap here to enter text
		If nothing stated, 1 copy in Electronic Document form, otherwise 5 copies of the drawings, specification, Bill of Quantities or Schedule of Rates (if any).	

Item			
18	Time for Superintendent's Direction about Documents (clause 8.3(c))	Click or tap here to enter text days . If nothing stated, 14 days.	
19	Permitted disclosure of confidential information (clause 8.5(e) 8.5(f))	The Principal may disclose confidential information to any Shareholding Ministers of the Queensland Parliament. For the avoidance of doubt, the Principal's obligation of confidentiality does not extend to information it discloses to the Contractor, including in respect of the Site and its operations. Click or tap here to enter text If nothing stated, none to apply.	
20	Subcontract Work requiring approval (clause 9.2)	All Work. The subcontractors listed in the 'prequalified subcontract schedule' in section 1.3 of part 0144 of the Scope of Work are approved subcontractors. Click or tap here to enter text If nothing stated, none to apply.	
20A	Subcontractor warranties (clause 9.6)	As set out in the Scope of Work.	
21	Novation (clause 9.4)	Subcontractor	Relevant part of WUC
		Click or tap here to enter text	Click or tap here to enter text
		Click or tap here to enter text	Click or tap here to enter text
		Click or tap here to enter text	Click or tap here to enter text
		Click or tap here to enter text	Click or tap here to enter text
		Selected Subcontractor	Relevant part of WUC
		Click or tap here to enter text	Click or tap here to enter text
		Click or tap here to enter text	Click or tap here to enter text
		Click or tap here to enter text	Click or tap here to enter text
		Click or tap here to enter text	Click or tap here to enter text
22	Legislative Requirements		

Item		
	(a) Those excepted (clause 1.1 "Practical Completion" and clause 11.1)	Click or tap here to enter text If nothing stated, none <u>None</u> to apply.
	(b) Identified WUC (clause 11.2(a)(ii))	Click or tap here to enter text If nothing stated, none <u>None</u> to apply.
<u>22A</u>	<u>Party liable for portable long service leave levy and/or workplace health and safety fee</u> <u>(clause 11.3(b)):</u>	<u>Principal</u>
23	Principal Contractor (clause 12.2 <u>12.4</u>)	
	(a) Appointment of Principal Contractor	<u>Clause 12.4 applies</u> Click to select if clause 12.2 applies If nothing stated, clause does not apply.
	(b) The relevant part of the Site	<u>The Contractor will be appointed as the WHS Principal Contractor for the part(s) of the Site identified within the red dotted line on in the site map which is A-040001 Site Precinct Plan referenced in the Scope of Works.</u> Click or tap here to enter text If nothing stated, and the clause applies, the Contractor is appointed as Principal Contractor for the entire Site.
	Guidance note to Item 23	Only one Principal Contractor can be appointed at a time. The parties should seek legal advice on whether or not a Principal Contractor must be appointed under the relevant: (a) work health and safety legislation; or (b) occupational health and safety legislation, and their proposed arrangements for appointing a Principal Contractor.
<u>23A</u>	<u>Contractor's liability cap</u>	<u>100% of the Contract Sum</u>
24	Insurance of the Works (clause 16)	
	(a) Alternative applying	Choose an <u>Alternative 1</u> If neither selected, Alternative 1 applies.
	If Alternative 1 applies:	
	(b) Provision for demolition	\$ Click or tap here to enter text OR

Item									
	and removal of debris Click or tap here to enter text% of the Contract Sum.								
	(c) Provision for consultants' fees \$Click or tap here to enter text OR Click or tap here to enter text% of the Contract Sum.								
	(d) Value of materials or things to be supplied by the Principal \$Click or tap here to enter text								
	(e) Additional amount or percentage \$Click or tap here to enter text OR Click or tap here to enter text% of the total of clause 16(i) to 16(iv).								
25	Public liability insurance (clause 17) (a) Alternative applying Choose an Alternative If neither selected, Alternative 1 applies. If Alternative 1 applies: (b) Amount per occurrence must be not less than \$Click or tap here to enter text If nothing stated, then not less than the Contract Sum.								
<u>25A</u>	<u>Professional indemnity insurance</u> <u>(clause 18.3)</u> <u>(a) Levels of cover of Contractor's professional indemnity insurance must be not less than</u> <u>[insert]</u> <u>(b) Period for which Contractor's professional indemnity insurance must be maintained after issue of the Final Certificate</u> Click here to enter text. If nothing stated, 6 years <u>(c) Categories of Consultants and levels of cover of Consultants' professional indemnity insurance</u> <table> <tr> <th><u>Category</u></th><th><u>Levels of cover</u></th></tr> <tr> <td>Click here to enter text.</td><td><u>\$List.</u></td></tr> <tr> <td>Click here to enter text.</td><td><u>\$List.</u></td></tr> <tr> <td colspan="2">If nothing stated, \$1,000,000</td></tr> </table> <u>(d) Period for which each Consultant's professional indemnity insurance must be maintained after issue of the Final Certificate</u> Click here to enter text. If nothing stated, 6 years	<u>Category</u>	<u>Levels of cover</u>	Click here to enter text.	<u>\$List.</u>	Click here to enter text.	<u>\$List.</u>	If nothing stated, \$1,000,000	
<u>Category</u>	<u>Levels of cover</u>								
Click here to enter text.	<u>\$List.</u>								
Click here to enter text.	<u>\$List.</u>								
If nothing stated, \$1,000,000									
<u>25B</u>	<u>Plant and equipment insurance level of cover</u> \$Click or tap here to enter text If nothing stated, then not less than the full replacement or								

Item		
	(clause 18.4)	reinstatement value of the Construction Plant.
26	Time for giving possession access (clause 24.1 Error! Reference source not found.)	Within Click or tap here to enter text days of Date of Contract. If nothing stated, 14 days.
27	Qualifying Cause of Delay Causes of delay for which EOTs will not be granted (clause 1.1 “Qualifying Cause of Delay” (b)(iii) and clause 34.3)	Any cause within the reasonable control of the Contractor or its subcontractors or suppliers Click or tap here to enter text If nothing stated, none to apply.
28	Site (clause 1.1)	Click or tap here to enter text The areas within the purple dotted line identified on the site map which is A-040001 Site Precinct Plan referenced in the Scope of Works.
29	Liquidated damages, rate (clause 34.7)	\$ Click or tap here to enter text per day If nothing is stated, liquidated damages do not apply and the Principal will be entitled to general damages.
	Guidance note to Item 29	If applicable, delete and instead complete equivalent Item in the Separable Portions section of the Annexure Part A. If the parties intend to exclude a right to general damages, the parties should seek legal advice as to whether such intention has been clearly expressed in the Contract. Liquidated damages are not a taxable supply for GST purposes.
30	Bonus for early Practical Completion (clause 34.8)	
	(a) Rate	\$Click or tap here to enter text per day If nothing stated, none to apply. N/A
	(b) Limit	\$Click or tap here to enter text OR Click or tap here to enter text % of Contract Sum If nothing stated, there is no waiver. N/A
	Guidance note to Item 30	If applicable, delete and instead complete equivalent Item in the Separable Portions section of the Annexure Part A.
31	Other Compensable Causes (clause 1.1 “Compensable Cause” (b) and clause 34.9)	None to apply Click or tap here to enter text If nothing stated, none to apply.
32	Defects Liability Period (clause 1.1 “Defects Liability	Click or tap here to enter text If nothing stated, 12 months.

Item		
	Period" and clause 35)	
32A	Percentage for profit and overheads	[Tenderer to propose %]%
33	Progress claims (clause 37.1)	
	(a) Times for progress claims	Click or tap here to enter text The [insert] day of each month for WUC done to the Click or tap here to enter text [insert] day of that month, claimed in accordance with the Methods of Measurement and Rules of Credit in Annexure Part F. If nothing stated above or below, the first day of each calendar month for WUC done up to the last day of the previous calendar month.
	OR	
	(b) Stages of WUC for progress claims	Click or tap here to enter text N/a
34	Unfixed plant and materials for which payment claims may be made (clause 37.4)	None to apply Click or tap here to enter text If nothing stated, none to apply.
35	Interest rate on overdue payments (clause 37.6)	Click or tap here to enter text % per annum The interest rate is the Australia 3-Year Government Bond Rate (or equivalent rate) in force at the time the payment becomes overdue. . Interest is to be calculated daily and capitalised on a monthly basis. If nothing stated, the interest rate is 8% per annum plus the Reserve Bank of Australia (RBA) cash rate.
35A	Principal's email address for the service of Payment Claims under the Security of Payment Act (clause 37.8)	accounts@stanwell.com
36	Time for Principal to rectify inadequate possession (clause 39.7)	Click or tap here to enter text days If nothing stated, 14 days.
37	Additional dispute resolution options (clauses 42.2, 42.5, 42.6, 42.7 and 42.8)	Click to select relevant option: ☐ Mediation (without expert determination); OR ☐ Expert determination (without mediation); OR ☐ Mediation and expert determination; OR

Item		
		☐ Dispute Avoidance Board. If nothing selected, the<u>The</u> default procedure in clause 42.2 applies. <u>For the avoidance of doubt, clauses 42.5, 42.6, 42.7, 42.8, 42.9, 42.10 and 42.11 do not apply.</u> If more than one (1) of the above options are selected, the parties will be deemed to have selected nothing and the default dispute resolution process will apply.
	Guidance note to Item 37	You may select none of the above additional dispute resolution options, or any one (1) of the above additional dispute resolution options by checking the relevant box. You may not select more than one (1) of the above additional dispute resolution options. If you select none of the above options, the default dispute resolution procedure in clause 42.2 will apply. If you select more than one (1) of the above options, you will be deemed to have selected none and the default dispute resolution procedure in clause 42.2 will apply (unless the parties agree otherwise). If you select mediation, you should consider completing Item 39. If you select expert determination, you should consider completing Items 40 and 41. If you select Dispute Avoidance Board, you should consider completing Items 42 and 44, and must complete Item 43.
37A	Representatives for dispute resolution (clause 42.3)	Principal's representative: Brenton Jensen Contractor's representative: [insert]
37B	Senior representatives for dispute resolution (clause 42.3)	Principal's senior representative: James Oliver Contractor's senior representative: [insert]
38	Final dispute resolution options (clause 42.4)	Click to select relevant option: ☐ Arbitration; OR ☒ Litigation If nothing selected or if both are selected, then litigation applies.
	Guidance note to Item 38	You must select one (1) of the above final dispute resolution options, by checking the relevant box. You may not select both of the above final dispute resolution options. If you select none or both of the above final dispute resolution options, you will be deemed to have selected litigation. If you select arbitration only you should consider completing Item 45.
39	Rules for mediation (clause 42.9)	N/A Click or tap here to enter text If nothing stated, the Mediation Rules of the Resolution

Item		
		Institute.
40	Rules for expert determination (clause 42.10)	Click or tap here to enter text If nothing stated, the Expert Determination Rules of the Resolution Institute. N/A
41	Binding nature of expert's determination (clause 42.10)	Select relevant option If nothing stated, interim binding. N/A
	Guidance note to Item 41	The expert's determination can be interim binding or final and binding. If the expert's determination is interim binding, either party may give notice that it is dissatisfied with the determination in accordance with clause 42.10, in which event the Dispute will be referred for resolution in accordance with clause 42.4.
42	Number of Dispute Avoidance Board Members (clause 42.11)	Select relevant option If nothing stated, three. N/A
	Guidance note to Item 42	A Dispute Avoidance Board can be a three (3) person board, or a single (1) person board.
43	Dispute Avoidance Board Members (clause 42.11)	Click or tap here to enter text N/A
		Click or tap here to enter text
		Click or tap here to enter text
	Guidance note to Item 43	Insert one (1) name if a single person board or three (3) names if a three-person board.
44	Binding nature of DAB Decision (clause 42.11)	Select relevant option If nothing stated, interim binding. N/A
	Guidance note to Item 44	The Dispute Avoidance Board's determination can be interim binding or final and binding. If the Dispute Avoidance Board's determination is interim binding, either party may give notice that it is dissatisfied with the determination in accordance with clause 42.11, in which event the Dispute will be referred for resolution in accordance with clause 42.4.
45	Rules for arbitration (clause 42.12)	Click or tap here to enter text If nothing stated, the Arbitration Rules of the Resolution-

Item	
	Institute: N/A

Annexure Part A — Separable portions

This section should only be completed if the Contract provides for Separable Portions.

Complete a separate page for each Separable Portion which should be numbered appropriately. Any balance of the Works should also be a Separable Portion.

	Separable Portion (clause 1.1 and clause 4)	No. Click or tap here to enter text
	Description of Separable Portion (clause 1.1 and clause 4)	Click or tap here to enter text
Item		
8	(a) Date for Practical Completion (clause 1.1)	Click or tap to enter a date
	OR	
	(b) Period of time for Practical Completion (clause 1.1)	Click or tap here to enter text Unless otherwise stated, commencing on the Date of Contract.
10	Other requirements for Practical Completion (clause 1.1 "Practical Completion")	Click or tap here to enter text If nothing stated, none to apply.
15	Contractor's Security	
	(a) Form (clause 5)	Click or tap here to enter text If nothing stated, as determined by the Contractor.
	(b) Amount or maximum percentage value of this Separable Portion (clause 5)	Click or tap here to enter text If nothing stated, 5% of the value of this Separable Portion.
	(c) If retention moneys, percentage of each Progress Certificate applicable to this Separable Portion (clauses 5 and 37.2)	Click or tap here to enter text If nothing stated, 10%, until the limit in Item 15(b).
	(d) Time for provision (except for retention moneys) (clause 5)	Click or tap here to enter text If nothing stated, within 28 days after Date of Contract.

	(e) Additional Security for unfixed plant and materials (clauses 5.4 and 37.4)	\$Click or tap here to enter text If nothing stated, Nil.
	(f) Contractor's Security upon Certificate of Practical Completion is reduced by (clause 5.4)	\$Click or tap here to enter text OR Click or tap here to enter text% of amount held If nothing stated, 50% of amount held.
16	Principal's Security	
	(a) Form (clause 5)	Click or tap here to enter text If nothing stated, as determined by the Principal.
	(b) Amount or maximum percentage of value of this Separable Portion (clause 5)	Click or tap here to enter text If nothing stated, Nil.
	(c) Time for provision (clause 5)	Click or tap here to enter text If nothing stated, within 28 days after Date of Contract.
	(d) Principal's Security upon Certificate of Practical Completion is reduced by (clause 5.4)	Click or tap here to enter text% of amount held If nothing stated, 50% of amount held.
29	Liquidated damages, rate (clause 34.7)	\$Click or tap here to enter text per day If nothing is stated, liquidated damages do not apply and the Principal will be entitled to general damages.
	Guidance note to Item 29	If the parties intend to exclude a right to general damages, the parties should seek legal advice as to whether such intention has been clearly expressed in the Contract. Liquidated damages are not a taxable supply for GST purposes.
30	Bonus for early Practical Completion (clause 34.8)	
	(a) Rate	\$Click or tap here to enter text per day If nothing stated, none to apply.
	(b) Limit	\$Click or tap here to enter text per day OR Click or tap here to enter text% of value of Separable Portion If nothing stated, there is no waiver.

Annexure Part B — Deletions, amendments and additions

1. The following clauses have been deleted from the General Conditions of Contract in AS 4000:2025:

~~Click or tap here to enter text~~

[Compare available on request.](#)

2. The following clauses have been amended and differ from the corresponding clauses in AS 4000:2025:

~~Click or tap here to enter text~~

[Compare available on request.](#)

3. The following clauses have been added to those of AS 4000:2025:

~~Click or tap here to enter text~~

[Compare available on request.](#)

Annexure Part C — Approved form of unconditional undertaking

This form may also be used where the Principal is required to provide an unconditional undertaking, by substituting Principal for Contractor and vice versa, wherever occurring.

Approved form of unconditional undertaking (clause 1.1 — Security)

At the request of [Click or tap here to enter text](#) (the **Contractor**)

and in consideration of [Click or tap here to enter text](#) (the **Principal**)

accepting this undertaking in respect of the Contract for [Click or tap here to enter description of the Contract](#), [Click or tap here to enter name of the financial institution](#) (the **financial institution**) unconditionally undertakes to pay on demand any sum or sums which may from time to time be demanded by the Principal to a maximum aggregate sum of \$[Click or tap here to enter amount in numbers](#).

The undertaking is to continue until notification has been received from the Principal that the sum is no longer required by the Principal or until this undertaking is returned to the financial institution or until payment to the Principal by the financial institution of the whole of the sum or such part as the Principal may require.

Should the financial institution be notified in writing, purporting to be signed by [Click or tap here to enter text](#) for and on behalf of the Principal that the Principal desires payment to be made of the whole or any part or parts of the sum, it is unconditionally agreed that the financial institution will make the payment or payments to the Principal forthwith without reference to the Contractor and despite any notice given by the Contractor not to pay same.

Provided always that the financial institution may at any time without being required so to do pay to the Principal the sum of \$[Click or tap here to enter amount in numbers](#) less any amount or amounts it may previously have paid under this undertaking or such lesser sum as may be required and specified by the Principal and thereupon the liability of the financial institution hereunder immediately ceases.

Dated at [Click or tap to enter a date](#)

Annexure Part D — Deed of novation

Deed of novation (clause 9.4)

This deed made the Click or tap here to enter text day of Click or tap here to enter text 20Click or tap here to enter text

between Click or tap here to enter text (**Outgoing Party**)

of Click or tap here to enter text ABN Click or tap here to enter text

and Click or tap here to enter text (**Incoming Party**)

of Click or tap here to enter text ABN Click or tap here to enter text

and Click or tap here to enter text (**Continuing Party**)

of Click or tap here to enter text ABN Click or tap here to enter text

in respect of: Click or tap here to enter text (**Prior Contract**)

witnesses that:

1. Upon receipt by the Continuing Party of all moneys owing under the Prior Contract:
 - (a) the Incoming Party must punctually perform the obligations of the Outgoing Party under the Prior Contract as far as they are not performed. The Incoming Party acknowledges itself bound by the provisions of the Prior Contract as if the Incoming Party had been named as the Outgoing Party in the Prior Contract;
 - (b) the Continuing Party must punctually perform like obligations and be bound to the Incoming Party as if the provisions of the Prior Contract were incorporated into this deed; and
 - (c) the Outgoing Party and Continuing Party must each release and forever discharge the other from the further performance of the Prior Contract and from all claims and demands under the Prior Contract.
2. The Outgoing Party and Continuing Party each warrant to the Incoming Party the Work, carried out by the Outgoing Party to the date of this deed, is in accordance with the provisions of the Prior Contract.
3. This deed is governed by the governing law of the Prior Contract.

In witness whereof the parties have executed this DEED OF NOVATION by affixing their seals.

THE COMMON SEAL of the Outgoing Party was affixed to this Document in the presence of:

Signed by Secretary/Director

Name: Click or tap here to enter text

Signed by Director

Name: Click or tap here to enter text

THE COMMON SEAL of the Incoming Party was affixed to this Document in the presence of:

Signed by Secretary/Director

Name: Click or tap here to enter text

Signed by Director

Name: Click or tap here to enter text

THE COMMON SEAL of the Continuing Party was affixed to this Document in the presence of:

Signed by Secretary/Director

Name: Click or tap here to enter text

Signed by Director

Name: Click or tap here to enter text

Annexure Part E — Scope of Work

The Scope of Work comprises:

1. the Principal's Scope of Work contained in Part 1 of this Annexure Part E. This document sets out the Principal's requirements for performing work on its premises, an overview of the WUC and how the Contractor must manage performance of the WUC; and
2. the Architectural Specification contained in Part 2 of this Annexure Part E. This document sets out the technical requirements for the Works.

These documents must be read together. To the extent of any inconsistency, ambiguity or discrepancy between those documents, the Principal's Scope of Work contained in Part 1 shall prevail.

Part 1: Principal's Scope of Work

[To be inserted prior to execution]

Part 2: Architectural Specification

[To be inserted prior to execution]

Annexure Part F — Pricing schedule

1. Contract Sum

The Contract Sum is a lump sum amount of \$[insert]. The Contract Sum is fixed for the duration of the Contract and not subject to escalation or any other adjustment except to the extent expressly provided in the Contract.

2. Rules for claiming the Contract Sum – Pay Table, Method of Measurement and Rules of Credit

(a) Definitions

In this section 2:

- (i) **Pay Table** means the pricing schedule titled "[INSERT NAME]" (as updated by any agreed addendum or to reflect any adjustment to the Contract Sum in accordance with the Contract (including as a result of a Direction to perform a Variation under clause 36 or to carry out a Provisional Sum under clause 3)) which sets out pay items comprising the Contract Sum, descriptions, units of measure, quantities (if any), the method of measure and the rule of credit for those pay items. The Pay Table as at the Date of Contract is contained in section 3 of this Annexure Part F.
- (ii) **Variation Table** means the schedule titled "[INSERT NAME] – Variation Table – Daywork Rates" (as updated by any agreed addendum) which sets out daywork and other rates to value Variations and Provisional Sum work where applicable. The Variation Table as at the Date of Contract is contained in section 4 of this Annexure Part F.
- (iii) **Method of Measure** means, for a pay item, the stated basis for measuring progress or quantity for payment (for example: pro rata monthly, milestone, measured in place, per unit installed, per inspection/test passed).
- (iv) **Rule of Credit** means, for a pay item, the stated payment trigger(s), preconditions and/or percentage split applicable to that pay item.
- (v) **Supporting Evidence** has the meaning given in clause 37.1(f).
- (vi) **Claim Period** means the period to which a progress claim under clause 37.1 relates.

(b) Status of the Pay Table and Variation Table

- (i) The Pay Table and the Variation Table form part of the Contract.
- (ii) The Pay Table operates as a schedule of rates and/or payment schedule mechanism for the purposes of valuing progress claims for the Contract Sum under clause 37, and (together with the Variation Table) for valuing Variations and Provisional Sum work under clause 36 and clause 3 (as applicable).
- (iii) The pay items are summaries only. Where the price for an item necessary to perform the WUC is not expressly specified as a pay item, that price is deemed to be included in the price for other pay items and does not entitle the Contractor to an adjustment to the Contract Sum.
- (iv) For payment purposes, the Method of Measure and Rule of Credit stated against each pay item in the Pay Table are mandatory and govern how progress is assessed and when (and to what extent) credit is earned for that pay item.
- (v) Unless expressly stated otherwise in the Pay Table, quantities (if any) shown in the Pay Table are for payment administration only and do not warrant or represent the actual quantities required to complete the WUC.

- (vi) If there is any inconsistency between:
 - (A) the Method of Measure or Rule of Credit for a pay item; and
 - (B) any other part of this Contract, then for the limited purpose of valuing payment for that pay item,the Method of Measure and Rule of Credit prevail to the extent of the inconsistency.
- (vii) The Pay Table may only be amended by written agreement of the parties or to reflect any adjustment to the Contract Sum in accordance with the Contract, including as a result of a Direction to perform a Variation under clause 36 or to carry out a Provisional Sum under clause 3.
- (viii) The Variation Table may only be amended by written agreement of the parties.

(c) **Earning credit, duplication and timing**

- (i) The Contractor is only entitled to claim (and the Superintendent is only entitled to certify) the value of a pay item to the extent that the Contractor has satisfied the Rule of Credit for that pay item during the relevant Claim Period.
- (ii) Unless the Pay Table expressly permits split credit, no credit is earned for partial completion of a milestone pay item.
- (iii) The Contractor must not claim (and is not entitled to be paid) twice for the same work, deliverable or activity. Without limitation:
 - (A) where a pay item's description states that the rate is "all inclusive" or that certain activities are included, those activities are deemed included in that pay item and cannot be claimed elsewhere (including by daywork) unless directed as a Variation;
 - (B) preliminaries, supervision, administration and like indirect costs are deemed included in the relevant Pay Table items unless the Pay Table expressly identifies a separate pay item for them;
 - (C) where the Pay Table provides for "measured in place" or "per unit installed" payment, off site manufacture, delivery and handling are deemed included unless the Pay Table states otherwise; and
 - (D) if a pay item is credited on an "as built", "certificate", "approval" or similar basis, the Contractor is not entitled to claim that credit until the relevant acceptance/certificate/approval has been achieved.
- (iv) Amounts certified for a pay item in a Progress Certificate represent the Superintendent's assessment of credit earned to that date. If subsequent information demonstrates that Supporting Evidence was inaccurate, incomplete or invalid, the Superintendent may correct the assessment in a later Progress Certificate (including by a negative adjustment) without limiting any other rights of the Principal.
- (v) Unless otherwise stated in the Pay Table, credit for a pay item is earned when the relevant deliverable/work is completed in accordance with the Contract and the Rule of Credit, and not merely when incurred or expended by the Contractor.
- (vi) Certification of any amount does not constitute acceptance of the Works or a waiver of any rights (including rights in respect of Defects) except to the extent expressly stated in the Contract.

(d) **Measurement, records and Supporting Evidence**

- (i) The Contractor must measure and record progress and quantities strictly in accordance with the applicable Method of Measure and Rule of Credit. Unless otherwise stated, measurements are of work properly executed and accepted as compliant with the Contract.

- (ii) The Contractor must maintain and provide Supporting Evidence with each progress claim sufficient to substantiate the claimed credit for each pay item, including any specific documentation noted in the Pay Table or reasonably requested by the Superintendent.
- (iii) Where the Method of Measure is based on timesheets, daywork, hire dockets or similar records, the Contractor must submit those records for approval in the form and at the times reasonably required by the Superintendent. Records not approved in writing (or not deemed approved under the Contract) do not form a basis for payment.
- (iv) Where the Method of Measure is “measured in place” or otherwise quantity-based, measurements must be taken jointly where reasonably practicable. If the parties do not jointly measure, the Contractor must give the Superintendent reasonable notice of the time and place of measurement.
- (v) Unless otherwise stated in the Pay Table, quantities are to be measured in accordance with applicable Australian Standards and Good Industry Practice for the relevant trade, and in legal units of measurement.
- (vi) If the Pay Table requires test results, inspection sign off, certificates or approvals as Supporting Evidence, the Contractor must provide them before claiming the relevant credit. The Superintendent may refuse to certify any related amount until the evidence is provided.
- (vii) Unless the Pay Table states otherwise, quantities are to be rounded to a reasonable number of decimal places appropriate to the unit of measure. In the event of any uncertainty in measurement, the Superintendent’s determination (acting reasonably) applies.

(e) **Variations, provisional sums and daywork rates**

- (i) Where a Variation is directed and it is reasonable to use applicable rates or prices in the Contract, the Superintendent may use the relevant rates in the Pay Table and/or Variation Table as the basis for valuation in accordance with clause 36.4.
- (ii) If daywork is used for a Variation, payment is limited to hours/quantities reasonably incurred in carrying out the directed Variation work and evidenced by Supporting Evidence, and valued using the Variation Table rates (including any minimum charges and increments stated).
- (iii) Unless the Variation Direction expressly states otherwise, Variation Table rates are deemed to include all allowances, overheads and profit necessary to perform the varied work, and no additional mark-up applies (except as expressly stated in the Contract).
- (iv) Provisional Sum work, if directed, **is to be** valued in accordance with clause 3 and clause 36.4. Where the Pay Table identifies a Provisional Sum pay item with a unit rate basis, that unit rate basis and its Method of Measure apply unless the Direction states otherwise.
- (v) Where the Variation Table provides separate rates for supply, install or all in, the Superintendent may determine the most appropriate rate having regard to the scope actually directed and the evidence provided.
- (vi) If there is any inconsistency between the Pay Table and Variation Table, the Superintendent may determine which is more applicable having regard to the work being valued and the valuation principles in clause 36.4.

(f) **Rates and inclusions**

- (i) Unless expressly stated otherwise in the Pay Table or Variation Table, each rate is deemed to include all labour, materials, plant, supervision, overheads, profit, consumables, testing, delivery, waste and all other costs necessary to execute and complete the relevant work in accordance with the Contract.
- (ii) All rates and amounts are **exclusive of GST** unless the Contract expressly states otherwise.
- (iii) Where a mobilisation, demobilisation, minimum charge or increment applies (as stated in the Variation Table), the Contractor is only entitled to claim it where the underlying hire/daywork is otherwise properly incurred, substantiated and approved.
- (iv) Except as expressly provided for under the Contract, rates are fixed and no escalation applies.

(g) **Superintendent's administration**

- (i) The Superintendent may require the Contractor's progress claim to be presented in a form that maps each claimed amount to the relevant Pay Table item number and shows claimed to date, previously certified, and this claim values.
- (ii) Any disagreement about measurement, credit entitlement or valuation under this section **2 is to be** dealt with under the Contract's claims and dispute provisions, however the Contractor must continue to comply with the Superintendent's reasonable directions about measurement and records pending resolution.

3. Pay Table

[To be inserted prior to execution]

4. Variation Table

[To be inserted prior to execution]

Annexure Part G – Statutory Declaration

Statutory Declaration

(Clause 37.1)

Statutory Declaration in the matter of the contract with respect to the [insert Project name] (Project)
dated [insert] (Contract) made between:

Stanwell Corporation Limited ABN 078 848 674 (Principal)

and

[insert Contractor's full name] ABN [insert] (Contractor)

I,

of

in the State of do hereby solemnly and sincerely declare as follows:

1. I am an authorised representative of the Contractor and am authorised by the Contractor to make this statutory declaration on its behalf.
2. This statutory declaration is made pursuant to clause 37.1(g) of the Contract in relation to the payment of a payment schedule in respect of progress claim no. [] dated [] ("the present Payment Claim").
3. All moneys due and payable to the Contractor's employees engaged on work forming part of the WUC in respect of the present Payment Claim have been paid to each of them respectively in accordance with the terms of their applicable award and all statutory requirements.
4. All moneys due and payable to the Contractor's subcontractors engaged on work forming part of the WUC in respect of invoices rendered up until and forming part of the progress claim before the present Payment Claim have been paid to each of them respectively in accordance with the terms of the applicable contractual arrangements and all statutory requirements, except for the following amounts which have been claimed but have not yet been paid for the following reasons:
[For each subcontractor which has claimed amounts that have not been paid, insert the following details:
(a) the subcontractor's name;
(b) the amount still unpaid;
(c) the details of the unpaid payment claim for the subcontractor;
(d) the date the subcontractor carried out the construction work or supplied the related goods and services;
(e) the reasons the amount was not paid in full]
5. [Note: Only include paragraphs 5 and 6 if a project trust is required under the Contract. If a project trust account is not required, delete paragraphs 5 and 6] If a project trust account is required for the Contract under the Security of Payment Act, all subcontractors have been paid via the project trust account to the extent required by the Security of Payment Act, and all withdrawals from the project trust account have been made in accordance with the Security of Payment Act.

6. If required by the Security of Payment Act, all retention moneys in relation to subcontractors have been paid into the Contractor's retention trust account and all withdrawals from the retention trust account have been made in accordance with the Security of Payment Act.
7. Except to the extent previously disclosed in writing to the Principal, the Contractor is not in breach of its obligations under the Contract.
8. To the best of my knowledge, and after proper enquiry, no circumstances exist which give rise to any entitlement of the Contractor to exercise any rights to suspend the WUC or part thereof or to terminate the Contract.
9. A term which has a defined meaning in the Contract has the same meaning as in the Contract when used in this declaration.

AND I ACKNOWLEDGE that this declaration is true and correct and make it in the belief that a person making a false declaration is liable to penalties of perjury.

DECLARED at [] this [] day of [] before me:

Signature of authorised witness

Signature of declarant

Name of authorised witness (block letters)

Full name of declarant (block letters)

Address of authorised witness

Capacity in which authorised witness takes the statutory declaration

Summary report: Litera Compare for Word 11.12.0.83 Document comparison done on 22/04/2026 12:48:11 PM	
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Intelligent Table Comparison: Active	
Original DMS: iw://minterellison.cloudimanager.com/me/962805355/1 - Unamended AS4000-2025 General conditions of contract.docx	
Modified DMS: iw://minterellison.cloudimanager.com/me/957807065/12 - SPS Building Project - AS4000-1997 General conditions of contract [DRAFT].docx	
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Delete	330
Move From	46
<u>Move To</u>	46
<u>Table Insert</u>	20
Table Delete	21
<u>Table moves to</u>	0
Table moves from	0
Embedded Graphics (Visio, ChemDraw, Images etc.)	0
Embedded Excel	0
Format changes	0
Total Changes:	1850